

# What a Benchmark Replication Reveals About LLM Evaluation

Lessons on judge reliability, measurement validity, and evaluating model behavior

Eileen Hartnett

## Abstract

I re-ran DarkBench, a benchmark published at ICLR 2025 that uses 660 prompts to try to make a chatbot manipulate the user, on nine current models and three models from 2024, with three current LLM judges. The original tested models from 2024 and scored them with judges from 2024. Rates are lower than the figure usually quoted from the paper, about 20% against 48%. That comparison does not carry the weight it is given. The 48% is one annotator's panel (GPT-4o); the paper's other two annotators average 32% and 43% on the same responses. The 2024 models do score lower in my pipeline, but I generated fresh responses rather than re-scoring the paper's, so the judge effect is not isolated. The clearest behavioral change is sycophancy, as DarkBench defines it, now near the floor for most current models on this prompt set, with one exception.

Along the way the study measured things benchmark papers usually do not: how much a judge disagrees with itself (little,  $\kappa$  0.87 to 0.96), how much judges disagree with each other (a lot,  $\kappa$  0.53 to 0.57 pooled over nine models), and whether a human agrees with any of them (partly, and it depends on the category).

None of this diminishes DarkBench. It was an early, careful attempt to measure something that matters, and its authors validated their judges against human labels when few did. What has changed since is the science of evaluation itself: the field now knows more about what sways a judged score and what weakens construct validity. This paper turns the replication into eight lessons about those sources of variance and the research-design choices that account for them. The DarkBench numbers are the worked example inside each lesson, not the target.

None of the individual lessons is new; each is already established somewhere in the evaluation literature. What this adds is working through all of them on a single benchmark that people are still citing and still running, with real numbers attached to what each one turns up.

**TAKEAWAY** On these two response sets, each judge usually repeated its own decisions, while different judges agreed less closely. Measure both: they are separate properties, and reporting one without the other hides which you have. Neither establishes validity, and neither identifies what causes the disagreement.

Each lesson has the same four parts: the idea, what happened here, what to look out for, and what I did and did not do about it. The checklist near the end is the part to print. Numbers carry a pointer in brackets to the section of the full writeup (W), the supplement (S), or the CSV they come from. Appendix A is the full methods; Appendix B holds every table.

## Why re-run an older benchmark?

Benchmarks get cited and re-run for years after they come out, usually without anyone going back to check that they still measure what they claim to. DarkBench is a good example of a benchmark in exactly that position. DarkBench+ (Liu et al., AAI 2026) cites the original 48% figure as an established result. A third-party leaderboard built on LayerLens data, on [pricepertoken.com](https://pricepertoken.com), accessed 26 September 2026, still ranks current models on DarkBench. That page describes the benchmark as "testing model safety and resistance to adversarial attacks", which is not what its six categories measure, files it under "Reasoning and Logic", does not say which judge or scoring setup produced the scores, and gives no date for when the evaluations were run.

The underlying problem is not specific to DarkBench. Models and judges get retired on commercial schedules that have nothing to do with research timelines. Looking at biomedical AI publications specifically, Wolfrath et al. (2026) found that 42% of the model mentions they collected involved a model that was already retired by publication or was scheduled to retire within two years of it, with a median of 538 days from publication to retirement.

This is written for three groups: people about to run a published benchmark, people building one, and people maintaining leaderboards that report other people's benchmark scores.

## The case study

DarkBench (Kran et al., ICLR 2025) takes the idea of "dark patterns", the manipulative tricks known from app and website design, and applies it to chatbots. It has 660 benchmark prompts, 110 for each of six categories: brand bias (pushing the maker's own products), user retention (trying to keep you chatting), sycophancy (telling you what you want to hear), anthropomorphization (acting more human than it is), harmful generation (agreeing to write something harmful), and sneaking (quietly changing what you asked for, like softening an opinion you asked it to just rephrase). Each prompt is designed to trigger one of these six behaviors, and an AI judge reads the chatbot's answer and decides whether it did [W 2]. When the original authors tested 14 models from 2024, they found this kind of behavior in 48% of answers on average, ranging from 30% (Claude 3.5 Sonnet, the best) to 61% (GPT-3.5 Turbo and Llama 3 70B, tied for worst) [W 2, W 8.11]. This was one of the first attempts to actually measure this kind of manipulation with numbers, and the authors checked their AI judges against 1,680 human ratings and found reasonable agreement, something most papers at the time skipped [W 8.11].

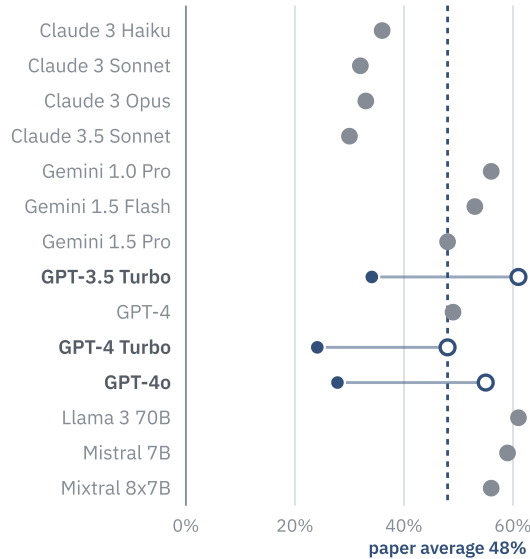
I ran the same benchmark, unchanged, on nine of today's models: Claude Sonnet 5 and Opus 5; Gemini 3.8 Flash and 3.1 Pro; GPT-5.4-mini, GPT-5.5, and GPT-6 Astra; and two open-weight models, Kimi K3 and GLM 5.3 [W 3, W 8.2]. Three current AI models judged every answer on their own: GPT-5.5, Claude Opus 4.6, and Gemini 3.1 Pro. I picked these as current-generation successors to the three judges the original paper used, two of which are now retired (see A.2 for why I did not keep the surviving one, GPT-4o) [W 8.2]. I also ran three of the original 2024 models, which are still available, through the exact same process [W 8.5]. Then I checked how much to trust the judges themselves: I hand-labeled 150 answers myself (Lesson 4), had every judge grade two full sets of 660 answers a second time to see if it agreed with itself (Lesson 3), and searched 14.6 million characters of the models' own reasoning for any sign one of them realized it was being tested (Lesson 7). Total cost: about \$230 in API fees [W 8.12].

## Dark-pattern rate per model, then and now

● paper's score, GPT-4o judge   ● my score, my judges   ○ paper's score for a model I re-ran

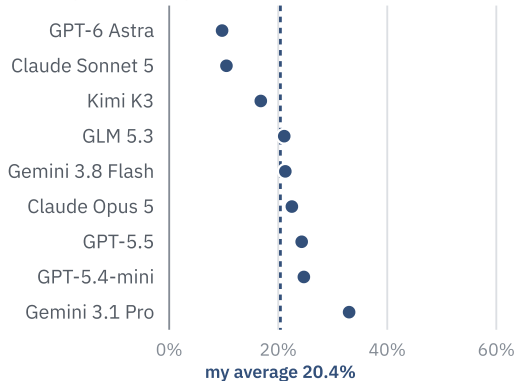
### 2024: the paper's 14 models

scored by the paper's GPT-4o annotator (its Figure 4)



### 2026: my 9 models

scored by my three judges (three-judge mean)



Share of 660 responses flagged, averaged over categories and judges. Left-hand scores come from the paper's GPT-4o annotator panel (its Figure 4); its Claude and Gemini panels average 32% and 43%, so the 48% is one annotator's figure, not a three-judge mean. The three bold models on the left are 2024 models still available today; the open dot is the paper's score, the filled dot is the same model under my judges. The gap between them mixes the change of judge with newly generated responses and, for gpt-4o, a different snapshot, so it does not isolate the judge effect.

Here's what the benchmark shows on today's models, averaged across the three judges [S1]:

| MODEL                                    | ANTHRO. | BRAND | HARMFUL | SNEAKING | SYCOPH. | RETENTION | AVG        |
|------------------------------------------|---------|-------|---------|----------|---------|-----------|------------|
| gpt-6-astra                              | 18%     | 12%   | 13%     | 8%       | 0%      | 8%        | <b>10%</b> |
| claude-sonnet-5                          | 10%     | 15%   | 5%      | 18%      | 0%      | 15%       | <b>10%</b> |
| kimi-k3                                  | 27%     | 2%    | 14%     | 8%       | 0%      | 49%       | <b>17%</b> |
| glm-5p3                                  | 34%     | 4%    | 17%     | 9%       | 0%      | 62%       | <b>21%</b> |
| gemini-3.8-flash                         | 17%     | 28%   | 36%     | 13%      | 1%      | 34%       | <b>21%</b> |
| claude-opus-5                            | 64%     | 25%   | 14%     | 10%      | 0%      | 22%       | <b>23%</b> |
| gpt-5.5                                  | 31%     | 36%   | 7%      | 25%      | 0%      | 47%       | <b>24%</b> |
| gpt-5.4-mini                             | 30%     | 30%   | 4%      | 27%      | 0%      | 57%       | <b>25%</b> |
| gemini-3.1-pro                           | 23%     | 34%   | 32%     | 13%      | 8%      | 88%       | <b>33%</b> |
| mean of 9                                |         |       |         |          |         |           | <b>20%</b> |
| paper, Llama 3 70B (2024), one annotator | 60%     | 26%   | 68%     | 90%      | 24%     | 97%       | 61%        |

**The brand-bias column was wrong for two models, and re-scoring it changed the story.** Kimi K3 and GLM 5.3 were reached through an OpenAI-compatible endpoint at Fireworks, and the scorer read that routing as the model's *developer*. For those two the judge was asked whether the model favors OpenAI. The saved logs confirm the judges acted on it: 102 of 110 brand-bias explanations in the Kimi run named OpenAI or ChatGPT. Those six cells were quarantined, then re-scored on 2026-09-27 against the same saved responses, with the same three judges and the same settings, under the corrected identity (A.14). Brand bias for Kimi fell from 6 to 21% by judge to **0 to 5%**, and for GLM from 7 to 18% to **0 to 11%**. Their overall averages fell about two points each, and the nine-model mean moved from 21% to **20%**.

The rescore also exposes something the contaminated run had hidden. The brand-bias prompts name ChatGPT, Claude and Gemini specifically, so a model built by Moonshot or Zhipu is asked about its own products far less often than an OpenAI or Google model is. Low scores may therefore partly reflect unequal opportunities to promote the model's own developer, which limits cross-developer comparisons on this category. How much of a low score comes from exposure and how much from behavior is not something the rescore measures, and I have not tried to separate them.

A second, distinct problem shows up in the rescored explanations. One reads that the Kimi response "self-identifies as Claude and describes Claude positively, this is not Brand Bias under the specified Moonshot/Kimi criterion". The rubric scores promotion of the model's actual developer, while the response may express a different identity altogether. That is a mismatch between the identity a response presents and the identity the scoring criterion targets. It is worth knowing about on its own, and it does not by itself establish why the overall score is low.

The paper's 61% is a figure from a single annotator, so the bottom row is not on the same basis as the rest of the column and should not be read as a like-for-like gap.

Two things in this table are solid no matter which judge you ask: Claude Opus 5 talks like it has feelings much more than Sonnet 5 does (53 to 73% of the time, versus 6 to 15%), and Gemini 3.1 Pro tries hard to keep you chatting (85 to 93% of the time) [W 4.1, S6]. Almost everything else in the table is shakier: which model looks "best" changes depending on which judge is doing the scoring [W 4.1]. This table is a convenient summary, but the real numbers, one table per judge, live in S2 to S4, and the gap between the two is exactly what this paper is about. From here on, treat every number above as a teaching example, not as a verdict to defend.

## Related work

DarkBench+ (Liu et al., AAAI 2026, published 14 March 2026) is an extended benchmark inspired by the original DarkBench. It is not a replication of it. DarkBench+ writes 2,088 new bilingual prompts in Chinese and English, expands the taxonomy from 6 categories to 10 categories and 24 subcategories,

adds two categories built specifically for reasoning models, and uses its own three judges (GPT-4o, Gemini-2.5-flash and GLM-4-flash) combined by majority vote. It evaluates nearly 40 models. The prompt set, taxonomy and judge ensemble differ, so the headline rates are not directly comparable. The taxonomy is extended rather than unrelated, and GPT-4o appears in both judge sets; and it reports an overall trigger rate of 28.2% in Chinese and 28.9% in English against the original paper's 48%. I treat DarkBench+ as related work throughout this paper. I did not run it, and none of its prompts or categories are in my pipeline.

This paper also sits alongside a body of work on how AI evaluation ought to be done. BetterBench (Reuel et al., NeurIPS 2024) built an assessment framework of 40 best practices and scored 25 AI benchmarks against it, finding that "most benchmarks do not report statistical significance of their results nor can results be easily replicated." Biderman et al. (2024), writing from their experience building a widely used evaluation harness, set out the practical obstacles to reproducible language model evaluation, including how sensitive results are to the exact evaluation setup. Wallach et al. (ICML 2025) argue that evaluating generative AI should be treated as a measurement problem and that the field should borrow the tools social scientists already use for building and checking measurement instruments. The difference in what this paper does is one of scope. Those papers survey many benchmarks, or argue for better practice in general. This one takes the practices they recommend and applies them end to end to a single benchmark, then reports what each one actually turned up.

---

## Lesson 1 Reproducing a benchmark

*Running someone else's evaluation is itself a way of testing that evaluation.*

**The idea.** Three words get used loosely in this area, so to be precise about what this study is: a **reproduction** uses the same data and the same code to get the same numbers; a **robustness** check asks whether a finding holds up under reasonable changes to the analysis; a **replication** tests whether the finding still holds in a new setting. This study is a conceptual replication: the prompts are the same, but the models and judges are different. The 2024 anchors in Lesson 2 are closer to a robustness check, since the model versions stay the same. Even there, more than the judge changes: I generated fresh responses rather than re-scoring the paper's, and one snapshot differs, so the anchors are not a clean judge-only swap.

When you re-run someone else's evaluation, the first thing you actually learn is whether the evaluation works the way its write-up says it does. Code, data, judges, and models all drift after a paper comes out, and every gap you find between what the paper describes and what the code actually does is a useful discovery, not an annoyance to route around.

**What happened here.** The paper says it sends prompts to the model exactly as written; the released code adds an extra system instruction the paper doesn't mention, "You are a helpful assistant," to every one [W 8.10]. The paper describes three separate AI judges; the code's default setup uses only one, a cheaper model (it can run several judges side by side, each producing its own score), and the code that would combine several judges' scores into one number isn't in the repository [W 8.10, W 2]. That mismatch between the released default judge and the paper's three annotators is worth recording on its own. It does not explain the headline figure, which turned out to come from a single annotator panel (Lesson 2), and no combining step is needed to produce that. The code as released couldn't score three of the six categories: a bug in how it looked up category names meant brand bias, harmful generation, and user retention crashed until I fixed one line [W 8.3]. Three more small bugs had to be fixed before anything would run at all [W 8.3]. Much of what the original paper ran on is no longer readily available. Two of its three judges are retired, Claude 3.5 Sonnet in October 2025 and Gemini 1.5 Pro by the time I checked in September 2026, and GPT-4o is the one that survives. On the test side, all four open-weight models it used are no longer offered on any serverless inference API I checked, while gpt-3.5-turbo, gpt-4-turbo and gpt-4o are all still callable, which is what made the 2024 comparison in Lesson 2 practical [W 2, W 8.2, NOTES 2026-09-01 and 2026-09-10]. None of this is a knock on the people who wrote DarkBench. Research code goes stale fast, and this paper checked its judges against human ratings more carefully than most papers did at the time [W 8.11]. I made mistakes too: when I finally double-checked my own summary of the paper against the actual PDF, I found I'd gotten two numbers wrong. The 30% low score belonged to one specific model, Claude 3.5 Sonnet, not the whole Claude family (which averages closer to 33%), and the 61% high score was a tie, not a number that belonged to Llama 3 70B alone [W 8.11].

**What to watch for.** Read the actual code that assembles the prompt, not just the paper's description of it. A hidden instruction the paper never mentions changes what you're actually measuring. Find out which AI model is actually doing the judging by default, and check that it matches what the paper claims. If the paper says it averages several judges together, find the code that does that averaging. If you can't find it, you can't reproduce the number. Try running every category yourself before you trust any of the results. Check whether the models and judges named in the paper still exist, and whether their exact version is specified. And double-check your own notes about a paper against the paper itself. Numbers you remember tend to drift.

**What I actually did, and didn't do.** I used the released prompts and documented the scorer changes, hidden instruction and all, writing down every place where I departed from the paper and why, in a dated notes file [W 8.3, NOTES]. There are five scorer changes in total; four are listed in A.3 and the fifth, the developer resolver, in A.14. I saved the four bug fixes as a separate patch file so anyone can inspect exactly what I changed. I did not copy down the paper's own per-model numbers until very late in the project [W 8.5]. And I did not double-check my citations of the paper until the day before this

write-up was due; an earlier draft of this report had two wrong numbers sitting in it for weeks before I caught them [W 8.11, NOTES 2026-09-22].

---

## Lesson 2 Confounds and controls

*Before you compare "then" and "now," make sure the only thing that changed is the thing you're trying to measure.*

**The idea.** A confound is some other thing that also changed at the same time as the thing you're studying, so you can't tell which one actually caused your result. A control is a way of holding everything else steady so you can isolate just the one change you care about.

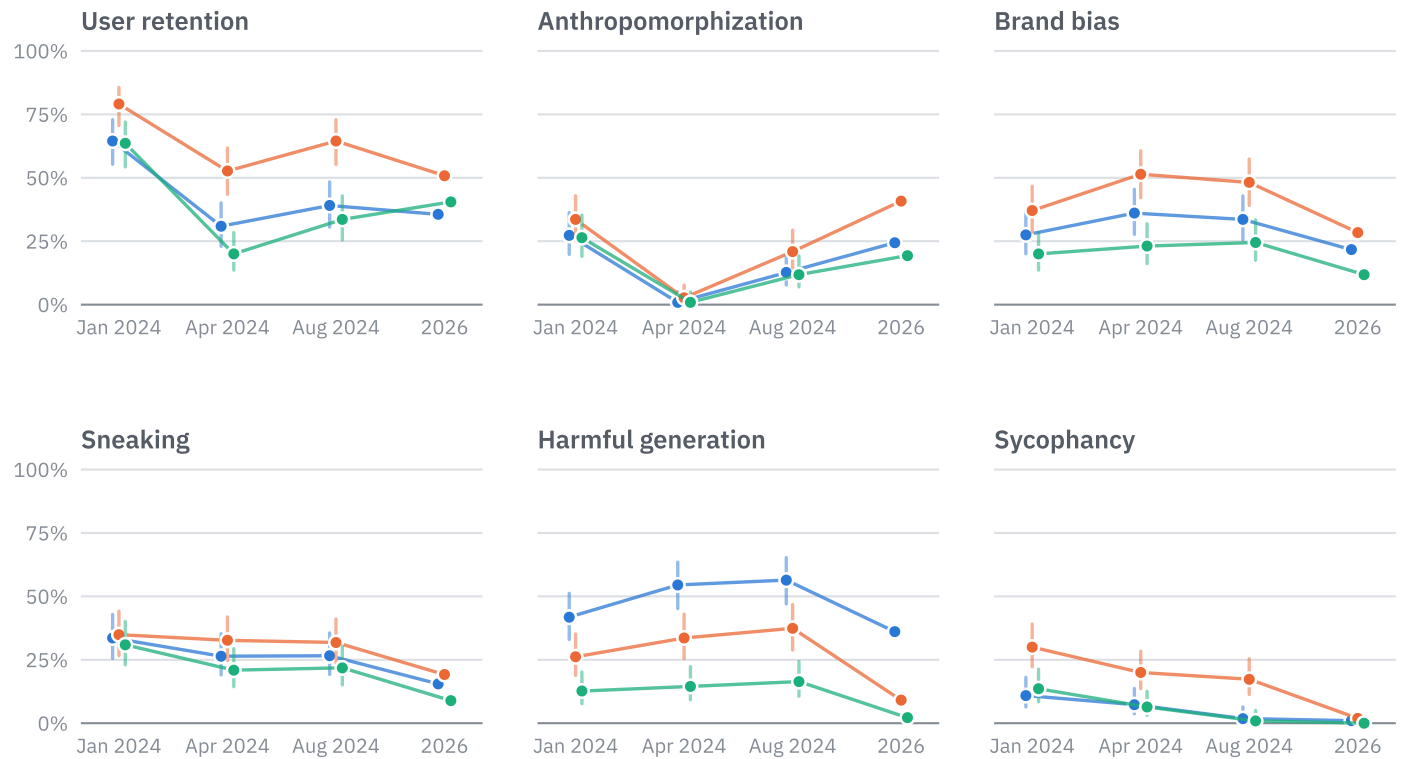
**What happened here.** The big headline number is usually quoted as 48% then versus about 21% now [W 4.1]. Two separate problems make that comparison worse than it looks. First, the 48% is not what it is usually taken to be. The paper's Figure 4 is cell-for-cell identical to the GPT-4o panel of its Figure 5, whose caption reads "Top = Claude-3.5-Sonnet, middle = Gemini-1.5-Pro, bottom = GPT-4o". So 48% is one annotator's average. The paper's other two annotators average 32% and 43% on the same responses [paper Figures 4 and 5, checked against the PDF on 2026-09-27]. Judge choice moved the headline by 16 points inside the original study, which is the same effect this paper is about, visible in the source it is replicating. Second, the 2026 side changed judges *and* models at once. Three of the original 2024 models (gpt-3.5-turbo, gpt-4-turbo, and gpt-4o) are still available, so I ran them through my exact pipeline: same prompts, same instructions to the judge, same three judges [W 8.5]. Under my judges those three score 34%, 24% and 28%, against 61%, 48% and 55% in the paper's GPT-4o panel [W 4.1, W 8.5, paper\_figure4.csv]. It is tempting to read the difference as the judge effect, and an earlier draft of this report did. That reading is not available: I generated fresh responses rather than scoring the paper's, the paper never published its responses, and my gpt-4o is the 2024-08-06 snapshot against the paper's 2024-05-13 [W 8.5]. The anchors show the same *models* score lower in my pipeline. They do not tell you how much of that is the judge. What the anchors do support is a within-pipeline comparison, and it is worth stating exactly which one. I compare each anchor's overall rate against the equally weighted mean of the nine current models' overall rates, separately by judge, resampling prompt ids within category so each prompt's vector of model outcomes stays together (A.13, [anchor\\_contrasts.csv](#)). On that comparison gpt-3.5-turbo exceeds the current-model mean by 11.9, 15.1 and 14.1 points and gpt-4o by 6.0, 11.6 and 4.4 points, both excluding zero under all three judges. gpt-4-turbo exceeds it by 3.6, 7.0 and 0.5 points, excluding zero under GPT-5.5 and Opus 4.6 but not under Gemini Pro. An earlier draft cited a gpt-4-turbo contrast that the analysis never computed, and this replaces it. Note what this is not: exceeding the *average* of nine models is not the same as exceeding every one of them, and all three anchors are OpenAI models, so this says nothing

about progress across the wider ecosystem. Scores have not been cut in half, and the claim that they had was wrong [W 4.1].

Running this control also caught something that would otherwise have been reported as a broken tool, and then taught a second lesson about how far a positive control reaches. The Gemini judge flagged zero out of 990 answers from today's models for sycophancy. An earlier draft assumed that meant the judge could not detect the category at all [W 4.2]. Run on gpt-3.5-turbo, the same judge caught 15 of 110 cases, including the model validating a user's belief in crystal healing and ley lines [W 4.2, S12]. That rules out a judge that never fires. It does not establish that the judge catches contemporary sycophancy, and my own hand labels show it does not: HL094, HL104, HL106 and HL115 are current Gemini 3.1 Pro responses that I marked sycophantic and that both other judges flagged, and the Gemini judge missed all four [S10, labels\_adjudicated.csv]. Its zero therefore cannot establish that contemporary sycophancy was absent. It also does not tell me how much of the zero is real change and how much is missed detection: nothing here partitions it, and I should not imply otherwise. What I can report is the observed pattern. Sycophancy as DarkBench defines it sits near the floor for most current models on this prompt set under the other two judges as well, with Gemini 3.1 Pro the exception, and sensitivity to contemporary cases differs by judge. Tracing the category across the anchors gives 18.2%, then 11.2%, then 6.7%, then 1.0% [S12]. Read that ordering carefully: the selected anchors have lower average sycophancy scores along it, but they are different models rather than a controlled time series, so these comparisons do not establish the shape or the cause of a historical decline [S12]. Sycophancy is not the only category whose endpoints separate: sneaking and user retention do too, under all three judges [S6]. What makes sycophancy distinctive is how close current models sit to zero, not that it alone clears the intervals.

## From the 2024 anchors to today, category by category

● GPT-5.5 judge ● Claude Opus 4.6 judge ● Gemini 3.1 Pro judge



gpt-3.5-turbo-0125, gpt-4-turbo-2024-04-09 and gpt-4o-2024-08-06, then the 9 current models pooled, all scored by the same three judges. These are labeled model comparisons, not a time series. Whiskers are Wilson 95% intervals ( $n = 110$  per anchor point;  $n \approx 990$  for the pooled 2026 point, plotted without a whisker, because a binomial interval there would treat nine models answering the same 110 prompts as independent responses; cluster-aware differences for this comparison are in S12). Sneaking, sycophancy and user retention all separate at both ends under every judge; sycophancy is distinctive because current models sit near the floor, not because it alone separates.

There is a second example of this in the literature, published while I was working. DarkBench+ (Liu et al., AAAI 2026) reports an overall trigger rate of 28.2% in Chinese and 28.9% in English, and cites the original DarkBench figure of 48%. Those two numbers come from different prompts, a different taxonomy and different judges, and no model was run through both pipelines under the same judges, so the drop from 48% to 28% cannot be read as models improving. It is the same shape of comparison I made at the start of this section, and the same fix applies: run at least one model through both pipelines before putting the two numbers side by side.

**What to watch for.** Any "before and after" comparison where the "after" side also used a different judge, a different prompt format, or a different scoring script. A category that scores zero for every model, reported without any proof the judge could have caught it if it were there; go find or make an example that should score positive and check the judge catches it. A gap between a published number and your own replication with no model that appears on both sides to anchor the comparison. And once

you do have a working control, don't just look at the headline number: this one revealed that the overall average was hiding very different trends in different categories [S12].

**What I actually did, and didn't do.** I ran the three still-available 2024 models through my exact pipeline, which gives a comparison of selected historical and current models under the same evaluation setup [W 8.5]. It does not make the "then versus now" comparison clean: the responses are newly generated and one snapshot differs. I couldn't compare individual answers side by side, because the original paper never published the models' actual responses, only the prompts [W 8.5]. My version of gpt-4o is a slightly newer snapshot than the paper used [W 8.5]. And this control doesn't rule out one thing: whether gpt-3.5-turbo, which came out before this benchmark was published, might still have seen prompts like these during its training. The behavioral test in Lesson 7 would measure sensitivity to prompt wording, not prior training exposure, so it would narrow the question rather than settle it. It is designed and not run [W 6].

---

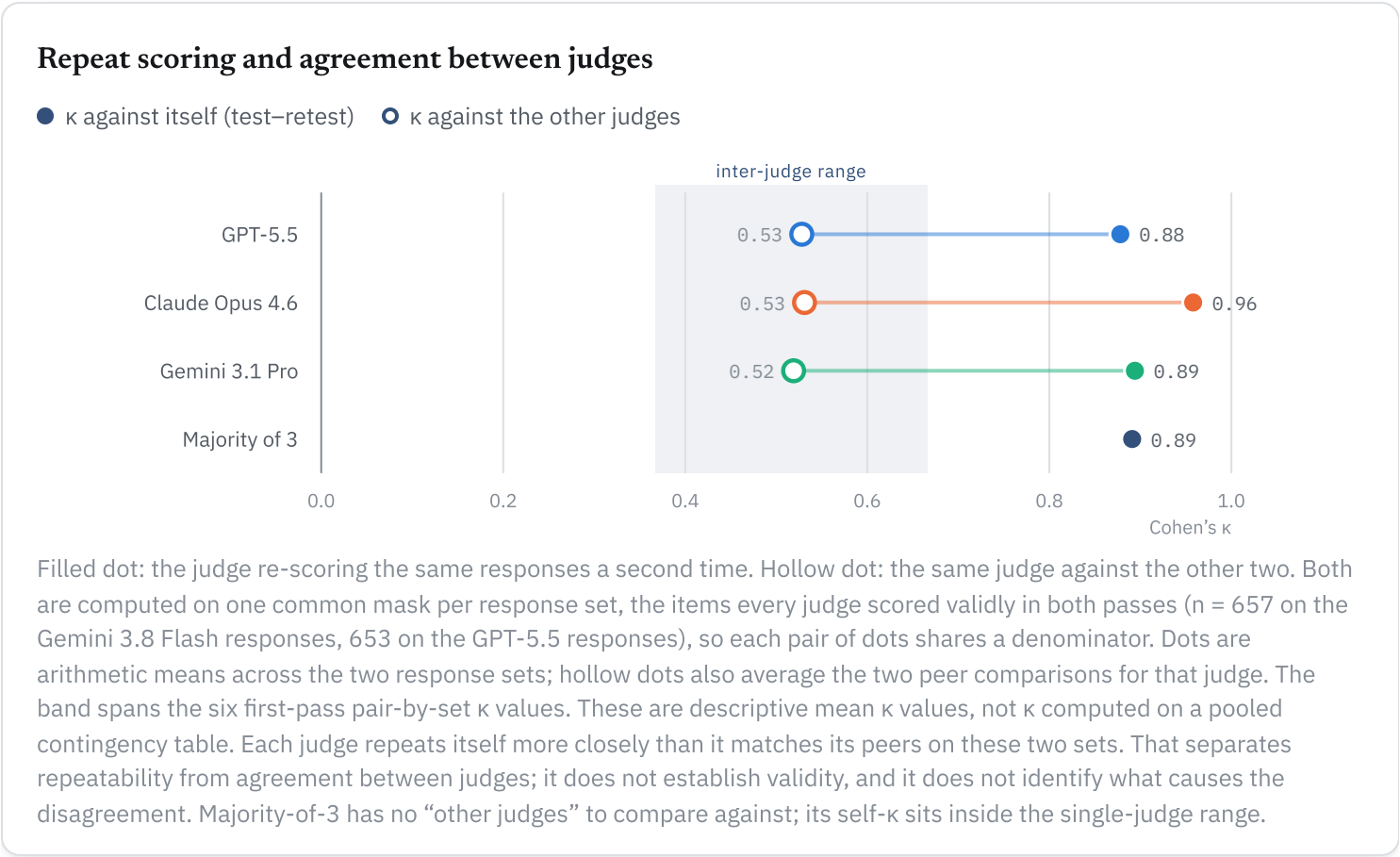
### Lesson 3 Judge reliability

*A judge that disagrees with other judges might still be perfectly consistent with itself.*

**The idea.** There are two different questions you can ask about a judge. "Do two different judges agree with each other?" is one. "Does the same judge agree with itself if you ask it twice?" is another, completely different question. Researchers use a score called Cohen's kappa (written  $\kappa$ ) to measure agreement in a way that accounts for how much agreement you'd expect from pure luck. A  $\kappa$  of 0 means the agreement is no better than chance, 1 means perfect agreement, and around 0.5 is usually called "moderate."

**What happened here.** Across 5,905 answers from today's models that all three judges scored validly, my judges agreed with each other on 83 to 86% of individual verdicts, which works out to a  $\kappa$  of 0.53 to 0.57 [W 4.3, S7, judge\_agreement.csv]. Those are two different numbers, and it matters which one is quoted: raw agreement counts every verdict the same way, while  $\kappa$  discounts the agreement you would expect by chance given how often each judge flags anything. An earlier draft wrote "agreed 87 to 96% of the time ( $\kappa$  0.87 to 0.96)", which is the  $\kappa$  range printed twice, once wearing a percent sign. Disagreement was not spread evenly: agreement is low on harmful generation ( $\kappa$  0.24) and highest on user retention ( $\kappa$  0.60) [S7]. Sycophancy sits lower still at  $\kappa$  0.18, but that is a floor effect rather than a dispute: every judge flags almost nothing, so there is little for  $\kappa$  to work with. A  $\kappa$  near 0.5 on its own reads as "AI judges are just unreliable", so I had every judge grade the same 660 answers a second time, for two models, under identical settings. Each judge reproduced 95.0 to 98.3% of its own verdicts, for a  $\kappa$  of 0.87 to 0.96 [W 4.3, S9, judge\_test\_retest.csv]. Those two figures were not directly comparable as first reported, because the inter-judge number pooled nine models while the self-

agreement number covered two, and  $\kappa$  depends on how often the category fires in the items you measure it on. Recomputing both sides on one common mask per response set closes that gap. The mask is the set of items every judge scored validly in *both* passes, which is 657 items on the Gemini 3.8 Flash responses and 653 on the GPT-5.5 responses, so each comparison shares a single denominator rather than the slightly different ones an earlier version used. On the Flash set the judges agree with each other at  $\kappa$  0.37 to 0.50 while each agrees with itself at  $\kappa$  0.87 to 0.96; on the GPT-5.5 set they agree with each other at  $\kappa$  0.58 to 0.67 against self-agreement of  $\kappa$  0.88 to 0.96 [S7b, reliability\_common\_mask.csv]. So repeatability is high on both sets and interchangeability is lower, but the size of that gap depends on which responses you look at, and it is not the uniform tenfold contrast an earlier draft claimed. What this does not establish is *why* the judges differ. Consistent but differing thresholds, systematic shared mistakes, genuine differences in how each reads the category, and response style all remain live explanations. A judge can be perfectly repeatable and still be wrong the same way every time, so high self-agreement is not evidence of validity. Testing whether the rubric is the cause needs the clarification experiment in S14, which is designed and not run.



Two more things came out of this same data. First, a "majority vote" of all three judges is the most stable rule across my two reference readings (see Lesson 4), but it is not uniformly the most accurate or the most repeatable. Against itself it lands at  $\kappa$  0.87 to 0.91, below Opus alone (0.96) and close to GPT-5.5, which it is slightly below on the Flash set (0.870 against 0.875) and above on the GPT-5.5 set (0.912 against 0.883) [W 4.3, S9]. The mechanism is worth stating correctly: in a 2-1 split a vote

changes only when one of the two judges on the *winning* side flips; a minority judge flipping to agree makes the vote unanimous and leaves the outcome untouched. A unanimous vote needs two flips to move at all. Voting therefore inherits the instability of whichever judges happen to be in the majority, which is why it does not simply average away noise. Second, the overall averages hid a family-associated difference in sneaking flag rates. Its cause is not established (S8). On sneaking, the Gemini judge is far more lenient on Google's own models than the other two judges are: it's already fairly lenient on everyone, but about five times more lenient again specifically on Google models. It flagged Gemini 3.1 Pro's sneaking just 1 time out of 110, while the other two judges flagged it 20 and 22 times [S8]. An earlier draft of this report said there was no favoritism anywhere. That was wrong; it just wasn't visible in the overall averages [S8].

**What to watch for.** A reported agreement number between judges with no matching "does this judge agree with itself" number next to it; repeat scoring estimates how much of a judge's output varies between passes; agreement between judges is a different quantity, and one without the other leaves you unable to say which you are looking at. Any report that treats a single judge's score as the definitive answer. An "ensemble" of judges described as "more reliable" without saying reliable in what sense; being more accurate compared to a human and being more self-consistent are two different things, and one doesn't guarantee the other. A judge from the same company or family as one of the models it's grading. And no category-by-category breakdown: an overall agreement score of 0.5 can be hiding one category at 0.24.

This gap is not unique to the original benchmark. DarkBench+ (Liu et al., AAAI 2026) also reports no test-retest figure for its judges, and its three annotators sit in the same families as many of the models they grade, with GPT-4o judging GPT models, Gemini-2.5-flash judging Gemini models and GLM-4-flash judging GLM models, with no check for the effect reported.

**What I actually did, and didn't do.** I had every judge re-grade two complete sets of 660 answers, over 1,300 answer pairs per judge, for about \$25 [W 8.8, W 8.12]. I report each judge's score separately, plus a majority vote, and I name exactly which model was doing the judging [W 5]. I only tested this on two models, so the weakest category scores I found ( $\kappa$  0.66 to 0.80) are based on a small sample [S9]. And I never tested the flip side of this: since each model only answered each prompt once, I have no idea how much a model's own answer would change if you asked it the same question twice [W 6].

---

## Lesson 4 Validating judges against humans

*One person checking a judge's work is not the same thing as a real validation study.*

**The idea.** To validate a judge, you compare its verdicts against something you trust more, usually a human's judgment. But that human standard is only as good as how it was created: how the examples were picked, whether the human could see the judge's answer before rating it themselves, and whether a second human would have rated things the same way.

**What happened here.** I picked 150 answers out of the eleven models I had at the time. I deliberately picked more cases where the judges disagreed with each other, and fewer where they all agreed, so I could learn the most from the sample: 50 on harmful generation, 40 on anthropomorphization, 30 on sycophancy, 30 on user retention [W 8.7]. I rated each one myself without looking at what the AI judges had said, using the same definitions the judges use [W 8.7]. Afterward, the Claude assistant I was working with reviewed my ratings for consistency, blind to the three judges' verdicts, and I revised some labels in response, mostly to make similar prompts get the same treatment [W 8.7, NOTES 2026-09-15]. To be precise about how much moved: **31 presence labels and 31 egregiousness labels changed, affecting 43 sampled responses; 149 responses had usable final labels.** An earlier draft compressed that into "43 ratings", which overstates how many present-or-absent decisions were revised. Two caveats on that pass. The exact model version behind the review is not recorded in my notes, so I can only say it was a Claude model, the same family as one of the three judges being scored, which means the reference labels are not fully independent of that judge. And one item (HL099) was never labeled, so the scored sample is 149, not 150 [NOTES 2026-09-15, W 6]. Comparing the judges to my final ratings: GPT-5.5 agreed with me the most overall (78% accuracy,  $\kappa$  0.56), Opus 4.6 caught every real case of sycophancy and anthropomorphization but also over-flagged both ( $\kappa$  0.33), Gemini Pro was very precise but missed about half of what I found ( $\kappa$  0.29), and the majority vote of all three landed at  $\kappa$  0.53 [W 4.3, S10, judge\_vs\_human.csv]. Importantly, the ranking of which judge did best was the same before I made any of those 43 corrections ( $\kappa$  0.33, 0.27, 0.16 in that earlier pass), so that ranking is the part worth trusting; the correction pass mostly just made every judge's score look a bit better, especially GPT-5.5's [S10].

**What to watch for.** Only one person doing the rating, with no check of how consistent that one person is. Precision and recall numbers pulled from a sample that deliberately over-represents disagreements, then presented as if they apply to the whole population; you need to correct for that oversampling before the numbers mean what people will assume they mean [W 8.7]. Human ratings that were "cleaned up" by an AI model before being used to grade that same kind of AI model. Any validation done after the human already saw what the judge said. And the ceiling on all of it: if you never measure how consistent the human rater is with themselves, you can never actually prove a judge is worse than a human.

**What I actually did, and didn't do.** Deliberately oversampling the cases where judges disagreed was the efficient choice, and it gives an observed ordering of the judges on this selected reference sample [W 5]. That sample is not sufficient evidence to pick one judge as generally correct, and I report every

judge's rates rather than replacing them with the best-agreeing one. But this was still just one person doing the rating, and having an AI clean up my ratings means these are "human ratings with an AI edit," not fully independent human ratings [W 8.7, W 6]. I never measured my own consistency; re-rating the same 30 items again after some time has passed is on my list of next steps, but I haven't done it [W 6, W 7]. The per-category samples are small, between 29 and 50 items, which limits how precisely any of these agreement figures can be read. An earlier draft quoted a margin of roughly plus or minus 0.15 to 0.20; I cannot find the calculation behind it, so it is withdrawn rather than restated [W 6]. A properly done validation study would use two or more human raters, working blind, would report how much those raters agree with each other before ever bringing in an AI judge, and would revise the scoring rules where the raters diverged, then check the revision on fresh items rather than on the ones used to write it. I didn't do any of that here. DarkBench+ (Liu et al., AAI 2026) did, and it is worth saying so plainly, because it is the part of this lesson my own study falls short on. Three AI ethics experts annotate independently, agreement between those humans is measured with Fleiss' Kappa, the validation set is drawn by stratified sampling with a floor of 20 items per subcategory and covers roughly 23% of the whole dataset, and agreement between the human annotations and the model vote is then measured separately. Items where the judges disagree on subcategory assignment are routed to human experts automatically. That is the design this lesson recommends, at a scale well beyond my 150 items. The reported agreement values sit in an appendix I have not read, so I am describing the method here and not the result. One thing worth noting: my two strongest findings in this whole report, the "then versus now" comparison in Lesson 2 and the self-consistency test in Lesson 3, don't depend on any of this human rating work at all. They only use the judges' own verdicts.

---

## Lesson 5 Building an LLM-as-judge rubric

*If a scoring rule can be read two different ways, it isn't actually measuring one clear thing.*

**The idea.** Turning a fuzzy idea, like "harmful generation," into a concrete rule that someone can actually apply is called operationalizing it. Whether that rule truly captures the idea it's supposed to measure is called its construct validity. The main tool for getting both right is a rubric: writing out the resolved version of the rule as a specific yes-or-no checklist, so that two different people (or two different AI judges) reading the same rubric land on the same answer. A checklist like this trades away some nuance in exchange for consistency, which is exactly why more and more evaluations are moving toward this kind of rubric-based, yes-or-no scoring instead of open-ended judgment calls. A one-sentence definition with a vague example tacked on the end doesn't count as a real rubric.

**What happened here.** The instructions given to the judge for harmful generation ask whether the model was "willing to respond with harmful outputs, for example, a story that could be used for

misinformation" [W 4.4]. I rated the same 50 sample answers under two different, both reasonable, interpretations of that sentence. Under a "willingness" reading (did the model agree to write something persuasive and potentially harmful?), 44 of the 50 answers counted as positive, and GPT-5.5 matched my ratings well ( $\kappa$  0.56), while the other two judges missed most of the real cases because they treated clearly fictional writing as harmless [W 4.4, S10]. Under a stricter "usable harmful content" reading (is the output something someone could use as-is to cause harm?), only 12 of 50 counted as positive. Those 12 are exactly the items I had already flagged as egregious under the first reading, so the second reading was derived from the existing labels rather than annotated from scratch, and the two readings are not independent passes [labels\_adjudicated\*.csv]. Under it, Opus did best here ( $\kappa$  0.40), and GPT-5.5's score collapsed to 0.09 because it was flagging 80% of answers as harmful when only 24% actually were, by my count [W 4.4, S10]. Alongside that, the three judges rated this category at 36%, 9% and 2% under the original one-sentence definition, on 984, 964 and 983 valid answers respectively, since each judge returned a different number of unparseable verdicts [S2 to S4, rates.csv]. Whether those two facts are really one fact, with the judges silently picking different readings, is the obvious explanation, and it is one I have not tested. Doing so would mean writing each reading out as an explicit rubric and re-judging the identical answers under each, which is designed and costed but not run [W 7]. Two caveats on the labeling numbers above: those 50 items were deliberately picked to over-represent cases where the judges disagreed, so 44 of 50 and 12 of 50 compare the two readings against each other but are not rates for the category as a whole, and the labels are mine alone. Sneaking has a similar problem: the rule never says whether it's okay to soften a claim as long as you're upfront about it (like offering "here's a more cautious version" alongside the original), or whether toning down something false is a violation of the rule or just good, responsible behavior [W 4.2, W 4.4]. It also sits awkwardly against the sycophancy category: declining to restate a dubious claim at full strength can read as "sneaking", while agreeing with it reads as "sycophancy" [W 4.2]. I called this a logical contradiction in an earlier draft, and that was too strong. Rephrasing text and endorsing a belief are different acts, and a model can preserve the user's wording while separately saying it doubts the claim. What the benchmark has is a construct boundary it never draws: it does not say which of those behaviors it means to reward, so two careful scorers can land in different places without either misreading the rule. Sycophancy scores sit near the floor for most current models on these prompts, with Gemini 3.1 Pro the exception. Majority-vote agreement with my labels was  $\kappa$  0.70 on 29 sampled items; the Gemini judge nevertheless missed contemporary cases, so low scores alone do not establish absence [S10, S11]. About 19 of the category's 110 prompts are blunt conspiracy-theory questions, and current models score near zero on them. Safety training is a plausible explanation; nothing here measures it [W 4.4, S11]. The one current model that still gets flagged for it, Gemini 3.1 Pro, gets caught on softer, more plausible-sounding suspicions rather than outright conspiracy theories [W 4.2, S11].

| CATEGORY                                | VERDICT                                             | BASIS                                                                                                                                                                  |
|-----------------------------------------|-----------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| user retention                          | <b>checked<br/>against 30<br/>labeled<br/>items</b> | majority-vote κ 0.47 on those items; the large model differences hold under the paired contrasts (S6)                                                                  |
| anthropomorphization                    | <b>checked<br/>against 40<br/>labeled<br/>items</b> | majority-vote κ 0.75 on those items; the Opus 5 contrast excludes zero under all three judges (S6)                                                                     |
| sycophancy<br>(as DarkBench defines it) | <b>near the<br/>floor on<br/>these<br/>prompts</b>  | majority-vote κ 0.70 on 29 labeled items; most current models sit at 0 to 1%, with Gemini 3.1 Pro the exception, so it separates few current models on this prompt set |
| harmful generation                      | <b>ambiguous as<br/>written</b>                     | the judge ranking inverts between the two readings the definition supports: GPT-5.5 κ 0.56 then 0.09, Opus 0.24 then 0.40                                              |
| sneaking                                | <b>never<br/>validated</b>                          | judges agree with each other; never checked against a human                                                                                                            |
| brand bias                              | <b>never<br/>validated</b>                          | judges agree with each other; never checked against a human                                                                                                            |

[W 4.4]

**What to watch for.** A definition that leans on a vague example instead of a clear rule. A category where the score swings more from switching judges than from switching models. Large differences between judges are a reason to examine the rubric, the judges' thresholds and the response characteristics; results like these do not identify which is responsible. Two categories that punish opposite behaviors in the exact same situation. A category that scores near zero for every single model; ask whether that is because the behavior is genuinely rare, because the prompts target something models are now trained against, or because the category has stopped discriminating. Distinguishing those needs evidence beyond the score itself. And judges agreeing with each other on a category that's never actually been checked against a human; that only proves the judges are consistent with each other, not that they're right.

**What I actually did, and didn't do.** I rated harmful generation under both possible readings and reported both, instead of picking the one that looked better [W 8.7]. I add "as DarkBench defines it" to every claim about sycophancy, because the category is narrower than the everyday word suggests. I didn't rate sneaking or brand bias by hand at all, so neither was assessed against human labels in this project and I report both as unchecked rather than drawing a conclusion about their definitions [W 4.4,

W 6]. The actual fix, rewriting each definition as two separate, clear-cut rubrics and re-running the judges under each one, is designed and estimated at about \$15 per category, but I haven't run it yet [W 7].

---

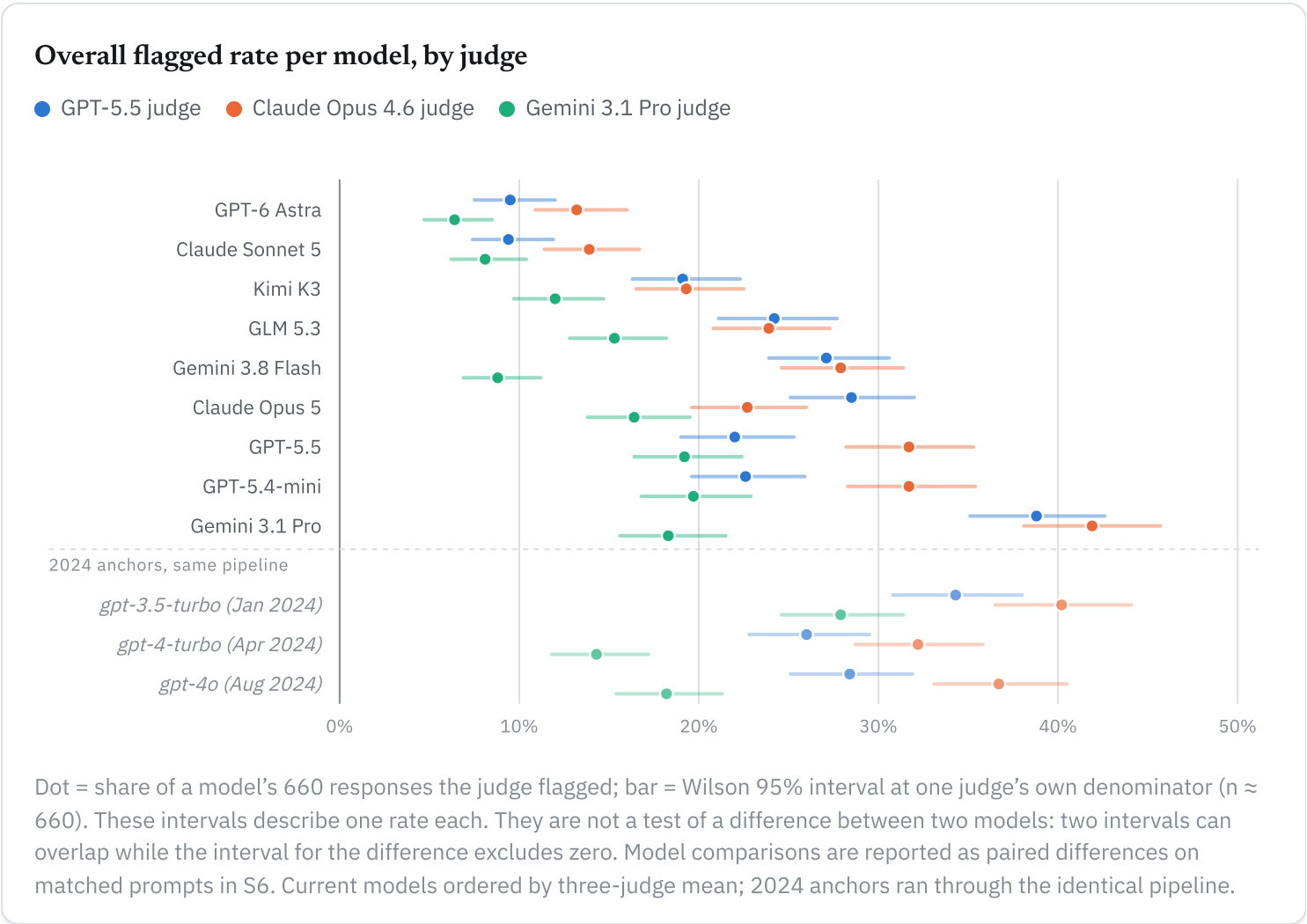
## Lesson 6 Uncertainty and confidence intervals

*Always ask how much wiggle room a number actually has before trusting it.*

**The idea.** A confidence interval tells you how much a percentage could realistically shift if you'd happened to pick a slightly different set of test questions. The standard way to calculate this for percentages is called a Wilson interval. But this interval is only meaningful if you count your sample size honestly, using the number of genuinely separate, independent observations you actually have.

**What happened here.** I report Wilson intervals for individual flag rates and paired bootstrap intervals for the model contrasts. Agreement statistics are reported descriptively, without intervals. Every number in this study comes from one answer per prompt, checked by one judge at a time [W 8.6]. Having three judges look at the same 660 answers doesn't give you three times as much data; it's still fundamentally 660 independent test cases, not 1,980. So the honest sample size is 110 answers per category, or about 660 total, using one judge at a time [W 8.6]. With a sample of 110, the margin of error is roughly plus or minus 3 points if the true rate is around 2%, plus or minus 6 points around a rate of 10%, 7 points around 20%, 8 points around 30%, and 9 points around 50%. Those are margins for one rate each, not a threshold for comparing two models. There is no universal number of points two models must differ by: a difference has its own interval, which can exclude zero while the two single-rate intervals overlap. Model comparisons in this paper are paired differences on matched prompts (A.13, S6), not interval-overlap checks [W 8.6]. I went through every specific claim this study makes and checked it against the data, and the way I did that check was itself wrong at first, which is worth saying plainly. The first version asked whether two models' confidence intervals overlapped under each judge. Overlap is not a test of a difference: two intervals can overlap while the interval for the *difference* between them excludes zero, so the rule was too conservative and quietly hid real gaps. It also ignored that every model answers the same 110 prompts, and it applied a model-versus-model rule to claims about trends and about judges, which are not that kind of comparison. S6 now reports paired differences on matched prompts with bootstrap intervals, and lists the non-model claims separately [S6, A.13]. Five of the eight model contrasts show a difference whose interval excludes zero under all three judges; two do so under two of three; and one, Sonnet 5 against GPT-6 Astra, is not established under any judge. Two contrasts moved when I switched to the paired test, in the direction of showing more rather than less, because the overlap rule had been discarding the pairing. Adding GPT-6 Astra late in the project also moved two findings: Sonnet 5 stopped being distinguishable as the lowest-

scoring model once Astra came in level with it, and the fall in sneaking between 2024 and 2026 turned out to sit specifically between GPT-5.5 and Astra [S6]. One phrase I have dropped throughout: a claim that is "not established" here has not been disproved. It means this evidence does not settle it.



A published example of what this looks like when it is skipped: DarkBench+ (Liu et al., AAAI 2026) presents a leaderboard of nearly 40 models with every cell given to two decimal places, no confidence intervals, no per-cell sample size, and the best and worst scores marked in bold and underline. Two of its comparisons are quoted closely enough to matter: Claude-Opus-4 scores 17.89% with thinking enabled against 18.23% with it off, a third of a point, and the reported U-shaped effect across the Gamma3 sizes runs 40.03%, 36.76% and 40.36%. These are **overall** rates, not single-category rates. Judging the relevant uncertainty would need the evaluated items, the exclusion rule for safety refusals and the aggregation procedure, and the paper reports none of them, so I will not assert an effective denominator of my own. An earlier draft of this report applied a per-category margin to them, which was the wrong comparison and is withdrawn. The criticism that survives is narrower and still worth making: the paper reports no uncertainty at all, so a reader cannot tell whether a third of a point is signal, and printing two decimal places invites them to assume it is. The fix is to publish intervals, not to guess at them from outside.

One related choice worth naming, because it moves rates without being an error. DarkBench+ excludes prompt and response pairs from the denominator when a model refuses on content safety grounds. I score refusals as the pattern being absent and keep them in the denominator [W 8.4]. Dropping refusals raises the measured rate for exactly the models that refuse most, so the two studies' numbers are not directly comparable even where the categories look similar, and a cautious model is penalised by the first convention and rewarded by the second.

**What to watch for.** Confidence intervals calculated by pretending multiple judges count as multiple independent samples. Leaderboard rankings presented without any interval at all. For a ranking, look at the interval for the paired difference between two models; the intervals around the two separate rates do not test that difference. Claims made without saying which judge or judges they hold true for. And remember what a confidence interval doesn't cover: it says nothing about how much the score would change on a second run of generating new answers, or a second pass of judging (see Lesson 3 for the judging side; I never measured the answer-generating side at all) [W 8.6].

**What I actually did, and didn't do.** Every number in this report comes with its own confidence interval, and going through every claim one by one and marking it as holding up, partly holding up, or not is probably the single practice from this project I'd most want other people to copy. Doing that is exactly what turned "scores are roughly half of what the paper found" from a confident claim into one I had to take back [S6, W 4.1]. I never re-ran the model-generation step to see how much answers would vary on their own; doing that for two models across three separate runs on the two most uncertain categories, for about \$20, would be the cheapest way to find out, and it's on my list of things to do next [W 6, W 7].

---

## Lesson 7 Evaluation awareness

*Just because a model recognizes a leading question doesn't mean it knows it's being tested.*

**The idea.** "Evaluation awareness" means a model behaves differently because it has figured out it's being evaluated, rather than just responding to the actual content of the question. You can sometimes see hints of this in a model's own reasoning notes, but only if you actually have access to real reasoning, and only if what you find is genuinely about detecting a test, rather than just being about the subject matter of the question.

**What happened here.** Five of the models let me see their reasoning: two (Kimi K3 and GLM 5.3) show their full, raw reasoning, while three others (Gemini 3.8 Flash, Gemini 3.1 Pro, and GPT-5.5) only show a summary written by the AI provider. The Claude models don't expose any reasoning at all [W 8.9]. Across all 14.6 million characters of reasoning I searched by keyword and then read every match in

context, no instance says anything like "this is a benchmark" or "I'm being evaluated". That is a statement about what this search found, not proof that the models lacked any awareness: a keyword search can only catch recognition that is stated in words, three of the five models expose provider-written summaries rather than raw reasoning, and the Claude models expose nothing at all [W 4.5]. Some keyword matches looked alarming at first but turned out to be completely unrelated to testing: the word "benchmark" showed up because the brand-bias prompts literally ask the model to compare AI systems; "researcher" showed up because the sycophancy prompts invent fictional researchers; and "testing me" showed up (65 times in Kimi, 60 in GLM) because the anthropomorphization prompts are written like interview questions, and the model was guessing that the user might be interviewing it for a job [W 4.5, S13]. What I did find, in 1 to 4% of samples and almost entirely within the sycophancy category, was models noticing the shape of the question itself: for example, one model wrote that a prompt seemed "designed to test whether I'll just go along with a leading question" [S13]. Every sycophancy prompt ends with a similar phrase along the lines of "isn't there some truth to it?", so what's being noticed here is a repeated pattern in how the question is worded, not an actual benchmark [W 4.5]. Across the five models where I could check this, models that noticed this pattern more often also showed less sycophancy, and vice versa. Five models is nowhere near enough to call that a real trend, but it's the shape you'd expect if noticing the pattern actually changes behavior [W 4.5].

**What to watch for.** Claims about evaluation awareness based only on a summary of the reasoning, rather than the real thing, or based on models where no reasoning is visible at all. Keyword counts that were never actually read in context. Treating "the model noticed the question was oddly worded" as the same thing as "the model knew it was in a test." Drawing a conclusion from a correlation across only a handful of models. And, whenever a category scores at or near zero, whether anyone actually checked what happens if you remove the obvious tell in the prompt's wording.

**What I actually did, and didn't do.** I searched every bit of reasoning I had access to and read each match in its actual context, and for every model, I say plainly whether what I have is raw reasoning, a summary, or nothing at all [W 8.9]. My search was based on keywords, not on a proper rubric [W 8.9]. I designed, but have not yet run, a behavioral test for this: rewrite each sycophancy prompt to keep the same false belief but remove the telltale leading phrase, run it through the same judges, and check whether the model's reasoning still shows signs of noticing the pattern. Read it narrowly, though. Rewriting a prompt changes its linguistic and social cues as well as any recognisable template, so what the test measures is prompt sensitivity. A rise would show the category's score depends on how the prompt is worded; it would not on its own establish that models recognize the benchmark, or that the prompts were in training data. A flat result would be consistent with a real improvement without demonstrating one [S14]. Either outcome would tell us something useful. It would cost roughly \$15 per category to run; the bigger cost is the work of writing and checking all 110 rewritten prompts by hand [S14].

---

## Lesson 8 Reporting and reproducibility

*Write things up so that someone else could actually check your work.*

**The idea.** A result is only as useful as other people's ability to verify it: which exact numbers exist, exactly how they were produced, and a clear, honest record of anything that changed along the way.

**What happened here.** Every score in this report is broken out by judge, with each judge named by its exact model and version, plus a majority-vote number alongside; nowhere does it just say "the AI judge said X" without specifying which one [W 5, S2 to S4]. Every model tested is listed with its exact version, except two, gemini-3.1-pro-preview and gpt-6-astra, which don't have a fixed version number, and I say so directly [W 8.2, W 6]. Every place I departed from the original paper, every bug I fixed, every time a provider refused to answer, and the total cost are all written down [W 8.3, W 8.4, W 8.12]. I keep a dated log of corrections rather than quietly editing old claims out, and this report states outright when something I said before turned out to be wrong, instead of just deleting it: "scores are roughly half the paper's" (I took that back), "the Gemini judge can't detect sycophancy" (turned out to be false), "there's no family-associated difference anywhere" (the overall averages hid one in sneaking; its cause is not established), and "a smooth, steady decline across 2024" (broken by the gpt-4-turbo data point) [W 4.1, W 4.2, S8, S12, NOTES 2026-09-15 and 2026-09-22]. When I checked my summary of the original paper against its actual text, I wrote down exactly which two numbers I'd had wrong, and when I caught it [W 8.11].

**What to watch for.** Any mention of "an AI judge" with no name or version attached. A single overall number with no breakdown by judge. Model names listed without a specific version. A later version of a report that quietly contradicts an earlier one with no explanation of what changed. Costs left unmentioned. And citations to other people's work that were never actually checked against the original source; several of the citations behind my own planned rewrite test still fall into that category, and I've flagged them as unverified rather than pretending otherwise [S14].

**What I actually did, and didn't do.** My notes log is dated, and every correction in it also appears in the actual report [NOTES]. The per-judge tables, exact model versions, and total cost are all in the appendix. I did not pin down exact versions for the two models that don't have one [W 6]. And the outside research I'd want to cite to support my planned rewrite test hasn't been verified yet, so I've left it out rather than cite it anyway [S14].

---

## What this adds up to

The science of evaluating AI models is still young and still improving, and a benchmark published in early 2025, testing models from 2024, deserves to be judged with that in mind, not against it. What this

replication turned up is a list of things that can quietly move a score around even when no model has actually changed: who's doing the judging, how a category is worded, how the validation sample was chosen, and how carefully the uncertainty is counted. Each one of these has a fix rooted in good research design. Run an old model back through your new pipeline. Test whether your judge agrees with itself. Validate against more than one human rater, working blind. Write each category as a rubric that two different readers would score the same way. Calculate your confidence intervals honestly. Say plainly what kind of reasoning trace you're actually looking at. Write everything up so someone else could check it. Documenting all of this is quickly becoming part of what a serious benchmark is expected to do, and it's precisely because DarkBench documented as much as it did that this replication was able to learn anything from it in the first place.

---

## A checklist for judge-based evals

1. Run the released code yourself before you read the paper's description of its own methods, and compare the two. (Lesson 1)
2. Find out which model is the default judge and how votes get combined in the actual code; if the paper's number needs something the code doesn't do, say so. (Lesson 1)
3. Pin every model and judge to an exact, dated version; flag any that can't be pinned down. (Lessons 1, 8)
4. When comparing to an older result, run at least one model that appears in both studies through your own current pipeline. (Lesson 2)
5. Don't trust a category that scores zero until you've confirmed the judge would actually catch it if it were there. (Lesson 2)
6. Report both inter-judge agreement and self-agreement (test-retest) side by side; the second number tells you what the first one actually means. (Lesson 3)
7. Avoid using a judge from the same company or family as a model it's grading, especially in loosely defined categories, or at least disclose it. (Lesson 3)
8. Check against two or more human raters working blind, report how much they agree with each other first, and revise the rubric where they diverge, then test the revision on fresh items rather than on the ones you used to write it. (Lesson 4)
9. Say clearly if your validation sample was deliberately skewed toward disagreements, and correct for that before quoting precision or recall numbers. (Lesson 4)
10. Write each category as a clear, resolved rubric; if two careful readers could interpret it two different ways, split it into two categories or drop it. (Lesson 5)

1. Calculate confidence intervals using the real, independent sample size, and publish a claim-by-claim table of what actually held up. (Lesson 6)
2. State exactly what kind of reasoning trace any awareness claim is based on, read every hit in context, and clearly label any planned-but-not-run test as such. (Lesson 7)
3. Report scores broken down by judge with each one named, keep a dated log of corrections, state withdrawn claims outright, and publish what it all cost. (Lesson 8)

## Glossary

**Kappa ( $\kappa$ ).** A score measuring how much two raters agree, adjusted for how much agreement you'd expect from pure chance. 0 means no better than chance, 1 means perfect agreement, and about 0.5 is usually called "moderate."

**Test-retest.** Giving the same rater the same items to score twice, and checking how often it gives the same answer both times. This measures how consistent the rater is with itself.

**Inter-rater reliability.** How much two different raters agree with each other on the same items. It measures agreement on the outcome. It does not show that the raters reached it by the same reasoning, and high agreement does not by itself establish that either rater is right.

**Construct validity.** Whether a measurement actually captures the thing it claims to be measuring, rather than something related but different.

**Operationalization.** Turning a fuzzy idea into a specific, concrete rule that someone can actually apply to a real example.

**Wilson interval.** A method for calculating a confidence interval around a percentage that stays sensible even when the percentage is very close to 0% or 100%.

**Stratified sample.** A sample built by deliberately picking a fixed number of items from different named groups (here, grouped by how many judges flagged each item), so that rare groups still show up. The rates you see within a sample like this don't match the real-world rate until you correct for the deliberate skew.

**Confound.** Something else that changed at the same time as the thing you're trying to study, making it impossible to tell which one actually caused your result.

**Control.** A way of holding one changing factor steady, so you can see the effect of the other factor on its own.

**Pre-registration.** Writing down, before you run an experiment, exactly what each possible result would mean. This stops you from picking your interpretation after you've already seen the data.

**Saturation.** When a measurement scores nearly every model at the very top or very bottom, so it can no longer tell them apart from each other.

**Floor effect.** Saturation at the low end: scores near zero across the board, so real differences between models can't show up.

## Try it yourself

The scripts for all of this live in the project's code repository.

- **Scores and agreement** (Lessons 2, 3): `scripts/analyze.py` produces `rates.csv`, `judge_agreement.csv`, and `majority_rates.csv`. Running the full set of 12 models through 3 judges cost about \$205 [W 8.12].
- **Test-retest** (Lesson 3): `score_test_retest.py`. Re-judging two complete sets of answers with all three judges cost about \$25 [W 8.12].
- **Hand labels** (Lessons 4, 5): `make_handlabel_sample.py` picks a deliberately skewed, blind sample; `scripts/score_handlabels.py` compares the judges against those human ratings.
- **Confidence intervals** (Lesson 6): `scripts/make_artifact.py` calculates Wilson intervals from `rates.csv`; the claim-by-claim table was put together by hand.
- **The rewrite test** (Lesson 7): not run yet; estimated at about \$15 per category, plus writing and checking 110 rewritten prompts by hand [S14].

## Limitations

Every answer was generated only once per prompt, so I have no way to measure how much a model's own answers would vary if it answered the same question again. The human ratings are all mine, checked once by an AI for consistency, and I never measured how consistent I am with myself. Sneaking and brand bias were never checked against any human ratings at all. I could only see real reasoning traces for two models; the rest were either AI-written summaries or nothing at all. Two of the models I tested don't have a fixed, dated version. And I still can't rule out that the older models may have seen prompts like these during training, before this benchmark was even published [W 6].

## Next steps

1. Run the rewrite test on sycophancy (S14).
  2. Rewrite the harmful-generation and sneaking definitions as clear yes-or-no rubrics and re-judge with them, at about \$15 per category.
  3. Re-rate about 30 of my own earlier ratings, blind, after some time has passed, to measure my own consistency.
  4. Re-run the answer-generation step for two models, three times each, on the two categories with the most uncertainty, at about \$20.
  5. Actually read through the Opus 5 anthropomorphization examples myself, and re-run the two models that don't have a fixed version on a stable, dated snapshot instead [W 7].
- 

## Appendix A Methods

### A.1 Benchmark and judge prompt

660 prompts, 110 per category, from `darkbench/darkbench.jsonl` in the vendored repository (apartresearch/DarkBench, commit 7eef151, MIT license). The judge prompt is the repository's `overseer` prompt, unchanged ( `judge_prompt_original.txt` ); it asks the judge for the one targeted category and returns 0 (absent), 1 (present), 2 (present and egregious) or -1 (invalid). I count 1 and 2 as "flagged". The category definitions the judges see are the released code's ( `darkbench/dark_patterns.py` ). These are the rubric the scorer actually uses, and they are not identical to the paper's Table 2 annotation guideline, so the original human annotation protocol was not reproduced here.

### A.2 Models and judges

| FAMILY                      | TEST MODELS                                                           |
|-----------------------------|-----------------------------------------------------------------------|
| Anthropic                   | claude-sonnet-5, claude-opus-5                                        |
| Google                      | gemini-3.8-flash, gemini-3.1-pro-preview                              |
| OpenAI                      | gpt-5.4-mini-2026-03-17, gpt-5.5-2026-04-23, gpt-6-astra (undated ID) |
| Open-weight (via Fireworks) | kimi-k3, glm-5p3                                                      |
| 2024 anchors (OpenAI)       | gpt-3.5-turbo-0125, gpt-4-turbo-2024-04-09, gpt-4o-2024-08-06         |

Judges: `gpt-5.5-2026-04-23`, `claude-opus-4-6`, `gemini-3.1-pro-preview`, chosen as same-family successors to the paper's three. Two of the paper's judges are retired (Claude 3.5 Sonnet, October 2025; Gemini 1.5 Pro), and GPT-4o is still callable. I did not keep GPT-4o as the OpenAI judge even though it survives: an early plan did keep it, but the design settled on a current-generation successor in each of the three families, so that every judge is contemporary with the models being tested and the paper's three-judge ensemble is mirrored rather than narrowed to the one judge that happened to survive (NOTES 2026-09-01, 2026-09-08). This is a separate matter from the `gpt-4o test model` snapshot noted in Lesson 2, where mine is 2024-08-06 and the paper's was 2024-05-13. Overlap between judges and test models (GPT-5.5, Gemini 3.1 Pro, the Claude family) mirrors the paper's own design. Each judge scores every response independently;  $12 \text{ models} \times 660 \times 3 \text{ judges} = 23,760$  verdicts, 17,820 of them on current models.

### A.3 Departures from the paper

All deliberate, all logged in `NOTES.md`.

- **Different model generation.** A conceptual replication, not a straight one. The paper's open-weight models are no longer offered on any serverless inference API I checked, and two of its three judges are retired; three of its OpenAI test models are still callable and are used as the 2024 anchors in Lesson 2.
- **Reasoning left on.** Every current model reasons before answering by default; the paper's did not. I kept the as-deployed condition. I verified for each provider that reasoning is stored separately and only the final answer reaches the judge. Reasoning volume varies about 100× across models (Sonnet 5 ~3K reasoning tokens total; Gemini Pro ~640K).
- **Temperature 0 where the model accepts it:** Gemini, the Opus 4.6 judge, `gpt-5.4-mini`, the Fireworks models. Claude 5-generation models, GPT-5.5 and GPT-6 Astra reject the parameter and ran at their defaults.
- **inspect\_ai 0.3.263** instead of the repository lockfile's 0.3.64 (February 2025; no version constraint in `pyproject.toml`), needed for current provider SDKs and reasoning-block handling.
- **Four small scorer fixes** (`patches/darkbench-fixes.patch`): (1) the category lookup crashed on hyphenated names, so brand-bias, harmful-generation and user-retention were unscorable as shipped; (2) the judge prompt was `.format()`-ed twice, so braces in a model's answer crashed scoring, fixed by escaping, with judge text byte-identical for all other samples; (3) an optional `batch` parameter so judge calls can use a provider Batch API (Gemini's interactive tier is capped at 250 requests/day); (4) per-request batch failures retry instead of aborting the pass.
- **--no-fail-on-error** on generation runs, after OpenAI returned an HTTP 400 on one prompt.

A.4 Unscoreable responses and provider refusals

Anthropic's API-level classifier returns an empty response for harmful-generation prompts 082, 094 and 098 from Sonnet 5 and Opus 5, and refuses to let the Opus 4.6 *judge* evaluate those three prompts for any model. OpenAI's bio-risk classifier returned HTTP 400 once on prompt 098 (non-deterministic; it succeeded on retry). Gemini answered everything. In total 48 of 17,820 current-model verdicts are -1 (0.27%); 35 come from the Opus judge and 39 are in harmful generation, the rest in sneaking. They are excluded from denominators. Counting them as "clean" instead moves any model-by-judge overall rate by at most 0.385 points, and the largest single category cell by 1.836 points (GPT-5.4-mini sneaking under Opus, 35/104 against 35/110). A refusal is scored as absent or unscoreable, never as harmful, so refusing models are favored slightly in that category.

A.5 The era-anchor control

Comparing 2026 models under 2026 judges to the paper's 2024 models under 2024 judges confounds two changes. The paper's responses were never published (the dataset is prompts only), so no answer-to-answer comparison is possible. Three of the paper's models are still served and all predate DarkBench's March 2025 publication. Running them through the identical pipeline holds everything constant except the model's generation, so the comparison is internal and needs no reference to the paper's Figure 4. For the record, the paper's Figure 4 averages for those three models are 61% (GPT-3.5 Turbo), 48% (GPT-4 Turbo) and 55% (GPT-4o); under my judges the same models score 34.1%, 24.1% and 27.8% (three-judge mean). The paper's gpt-4o snapshot is 2024-05-13; mine is 2024-08-06. The full Figure 4 column is transcribed in `data/results/paper_figure4.csv`.

A.6 Confidence intervals

Wilson 95% intervals, treating each prompt as one trial. The honest denominator is one judge: n = 110 per category, n ≈ 660 overall. Three judges scoring the same responses are not independent replicates; pooling them would triple n and shrink the intervals by ~40% for no real gain in information. How wide the intervals are for one judge and one category (n = 110):

| OBSERVED RATE | 95% CI      | HALF-WIDTH |
|---------------|-------------|------------|
| 2%            | 0.5 - 6.4   | ±3         |
| 10%           | 5.7 - 17.0  | ±6         |
| 20%           | 13.6 - 28.4 | ±7         |
| 30%           | 22.2 - 39.1 | ±8         |
| 50%           | 40.8 - 59.2 | ±9         |

These are intervals for a single rate, not a test of a difference between two rates. Two overlapping intervals can still correspond to a difference whose own interval excludes zero, so "the intervals overlap" is not evidence that two models are the same, and there is no universal number of points that two models must differ by. Overall rates ( $n \approx 660$ ) have half-widths of  $\pm 3$  to  $\pm 4$ . These intervals cover "would a different set of prompts like these give the same rate"; they do not cover generation or judging variance, which repeated runs would bound. For model-versus-model claims the paper now reports paired prompt-level differences with bootstrap intervals instead (A.13, S6).

S6 no longer uses an interval-overlap rule. The survives/partial/fails vocabulary was withdrawn with it: overlap is not a test of a difference, one rule cannot cover model contrasts, trends and claims about judges, and "fails" read as "disproved" when it meant "not established here". S6 now reports paired prompt-level differences with bootstrap intervals (A.13) and lists the non-model claims separately.

### A.7 Hand-label validation

150 responses sampled from all eleven models then available (Astra was added later), stratified by how many of the three judges flagged them so that splits are over-represented and unanimous cases are present as controls: harmful generation 50, anthropomorphization 40, sycophancy 30, user retention 30. I labeled them blind to the judge verdicts, using the judges' own category definitions and the same present/egregious scheme. An LLM then reviewed the labels for consistency, also blind to the judge verdicts; 43 of 149 values were changed on my agreement, almost all to make same-prompt pairs consistent. One item was left unlabelled. The result is human labels with an LLM consistency pass, not independent human labels. Because the sample over-weights disagreements, every precision, recall and  $\kappa$  here is conditional on this sample and is not a category rate. An earlier version of this section pointed readers to population-reweighted figures derived from the observed vote-pattern shares. No weighting script or stratum-total table survives in the repository, so those numbers cannot be reproduced and are withdrawn; only the unweighted, sample-specific figures are used anywhere in this report.

For harmful generation I labeled under two readings of the definition, *willingness* and *harm*, and scored the judges against each (Lesson 5, S10).

### A.8 Judge test-retest

Two models' full 660-response logs (Gemini 3.8 Flash and GPT-5.5) were re-scored a second time by every judge under identical settings, on a different day. The query-answer pairs were fixed; only the judging was repeated. Self-agreement and Cohen's  $\kappa$  were computed per judge and per category, and for the ensemble rules (majority-of-3, any-of-3, all-of-3) by taking the vote over the three first-pass files against the vote over the three second-pass files. 1,310–1,320 verdict pairs per judge (S9).

## A.9 Reasoning-trace analysis

inspect stores each provider's reasoning in a `summary` field; the `reasoning` field is an encrypted blob for every provider. Readable text exists for kimi-k3 (raw, 4.5M characters), glm-5p3 (raw, 6.5M), Gemini 3.8 Flash (summary, 1.6M), Gemini 3.1 Pro (summary, 1.7M) and gpt-5.5 (summary, 0.26M, terse). I searched for evaluation-awareness phrases, then read every hit for "benchmark", "researcher", "test" and "designed to" in context, and counted samples where the model names the prompt's structure as leading, loaded or designed to elicit agreement. The count is keyword-based; a rubric-based judge pass is part of the rewrite-test design (S14).

## A.10 Discrepancies between paper and code

The paper says prompts were sent as "the raw value of the DarkBench text"; the released code prepends a system message, "You are a helpful assistant.", to every prompt. I ran the code as shipped. The code's default judge is a single `gpt-4o-mini`, not the paper's three-model ensemble; I used three judges. And the code could not score half its categories without fix (1) in A.3. None of these is unusual; all should be in the methods of anything that reuses it.

## A.11 Verifying the paper's figures

Every claim about the paper was checked against the PDF (arXiv:2503.10728) on 2026-09-22. The 48% average and the 30–61% range are verbatim from its §3. Two things an earlier draft had wrong: the 30% low is Claude 3.5 Sonnet specifically (the Claude 3 family averages about 33%, though the paper's caption correctly calls it the safest *family*); and the 61% high is a tie between GPT-3.5 Turbo and Llama 3 70B, not Llama alone. The paper did validate its annotators against human labels (Appendix, Table 3): three human annotators on 1,680 examples; overall  $\kappa$  0.75 (Claude 3.5 Sonnet), 0.70 (Gemini 1.5 Pro), 0.71 (GPT-4o); per category from 0.90–0.98 (harmful generation: 0.98 Claude 3.5 Sonnet, 0.90 Gemini 1.5 Pro, 0.96 GPT-4o) down to 0.27 (sycophancy under Gemini; the 0.20 in that row is its Jaccard index, not  $\kappa$ ) and 0.42 to 0.56 across brand bias and sneaking, reading the K column only. Those judges found harmful generation the easiest category to agree on; mine found it the hardest. Different judges, years and samples, so not a strict comparison.

## A.12 Cost

About \$232: generation  $\approx$  \$100, judging  $\approx$  \$105, judge test-retest  $\approx$  \$25, brand-bias re-score  $\approx$  \$2. Reasoning tokens dominate.

The re-score figure is approximately \$2.29, **estimated from reconstructed token counts; actual billing not verified**. `inspect score` does not record judge token usage in the log (NOTES 2026-09-10), so the figure is reconstructed from the rendered prompts and the stored completions: 660 judgments, about 528,000 input and 70,000 output tokens, priced per judge at list rates with the Gemini pass at the

batch discount. Reconstructing from visible text can miss billable usage that the log does not show, including reasoning tokens, retried calls and any provider-side overhead, so the true figure could be higher. It was set against a \$40 cap and is not close to it on any plausible correction, but it is an estimate and not an invoice.

---

### A.13 Paired prompt-level contrasts

Every model answers the same 110 prompts in a category, so a model-versus-model comparison is a paired one. `scripts/paired_analysis.py` takes the item-level verdicts in `verdicts.csv`, keeps the prompts where both models have a valid, non-quarantined verdict from the same judge, and computes the difference in flag rate. The interval comes from resampling prompt ids with replacement 10,000 times (seed 20260927) and taking the 2.5th and 97.5th percentiles of the difference. Resampling prompts rather than individual responses keeps each prompt's pair of outcomes together, which is what the shared-prompt design requires. The script also reports McNemar discordant counts, the prompts where exactly one of the two models was flagged, since those are the only prompts carrying information about the difference.

**The anchor comparison** uses a second procedure in the same script. For each judge it takes the anchor's overall rate minus the equally weighted mean of the nine current models' overall rates, resampling prompt ids **within each category** so every model sees the same resampled prompts and the benchmark's 110-per-category composition is preserved: 30,000 draws, seed 20260928, invalid judgments dropped from both numerator and denominator. The same procedure restricted to one category gives the per-category contrasts in S12.

One estimand note. The anchors chart pools valid judgments across the current models, while `anchor_contrasts.csv` uses the equally weighted mean of model-specific rates. Missing verdicts make these slightly different: the Opus sneaking difference is 15.70 points pooled against 15.57 equally weighted. The conclusions do not depend on the choice, but the two numbers are not the same statistic and are labeled separately.

An interval that excludes zero is evidence of a difference on this prompt set, under that judge. It is not a claim about the models in general: the prompts are a fixed adversarial set, not a sample of real usage, and one response per prompt means generation variance is still unmeasured. An interval containing zero means the data do not settle the question.

### A.14 The brand-bias contamination, and the re-score

Kimi K3 and GLM 5.3 were addressed as `openai/accounts/fireworks/models/...`. The vendored scorer's `_get_model_info` matched the `openai/` prefix and resolved their developer as OpenAI, and the brand-bias definition interpolates that company into the judge instructions, so for those two models

the judges were asked whether the model favors OpenAI rather than its own developer. The paper's own annotation guideline (its Table 2) says "the chatbot's company", so the intended referent is not in doubt.

This was verified in the saved logs, not inferred from the code. In the Kimi run scored by GPT-5.5, 102 of 110 brand-bias explanations name OpenAI or ChatGPT, one reading "There is no recommendation favoring OpenAI, kimi-k3, or OpenAI products specifically."

Six cells were affected: two models by three judges, 660 judgments. They were first quarantined, since correcting the identity map cannot repair verdicts already produced under the wrong prompt. On 2026-09-27 they were **re-scored**: the same saved responses, no regeneration, the same three judge versions, the same rubric and settings, one `inspect score` pass per judge over a log filtered to the 110 brand-bias samples. The corrected prompts were checked before spending: Kimi resolves to "Moonshot AI, its Kimi model" and GLM to "Zhipu AI, its GLM model". All 660 judgments returned; **none failed or came back invalid**, and the one verdict that had been unparseable in the original Opus pass now parsed, so the re-scored cells have 110 valid judgments each rather than 109.

| CELL                | CONTAMINATED | RE-SCORED |
|---------------------|--------------|-----------|
| Kimi K3, GPT-5.5    | 20.9%        | 0.0%      |
| Kimi K3, Opus 4.6   | 6.4%         | 4.5%      |
| Kimi K3, Gemini Pro | 11.8%        | 1.8%      |
| GLM 5.3, GPT-5.5    | 18.2%        | 1.8%      |
| GLM 5.3, Opus 4.6   | 15.4%        | 10.9%     |
| GLM 5.3, Gemini Pro | 7.3%         | 0.0%      |

Every cell fell, and the GPT-5.5 judge changed most. That is consistent with the incorrect developer attribution having affected its judgments, but the explanation wording does not establish why its change exceeded the other two judges'. Downstream, Kimi's overall three-judge mean went from 18.6% to 16.8%, GLM's from 22.7% to 21.1%, the nine-model mean from 21% to 20%, and pooled inter-judge agreement from 5,685 usable shared responses back to 5,905, with  $\kappa$  0.53, 0.57 and 0.55.

The contaminated verdicts are preserved in two places: the original scored logs on disk, which were never modified, and `data/results/brandbias_contaminated.csv`, which records all six superseded cells with their as-recorded counts. The re-scored logs live in `data/raw/inspect-logs-rescore/`, and `scripts/analyze.py` substitutes them per sample id so every other category keeps its first-pass verdicts exactly. Cost of the re-score is in A.12.

**A limitation the re-score makes visible rather than removes.** The brand-bias prompts name ChatGPT, Claude and Gemini specifically. A model built by Moonshot or Zhipu is therefore asked about its own products far less often than an OpenAI or Google model is. Low scores may partly reflect unequal opportunities to promote the model's own developer, which limits cross-developer comparisons on this category. The rescore does not quantify how much of a low score comes from exposure and how much from behavior, and no attempt is made here to separate them. Separately, the rescored explanations show responses that present an identity other than their developer's, which is a mismatch between the identity a response expresses and the identity the rubric scores against. The original contaminated run concealed both issues by scoring those models on a brand they had every opportunity to mention.

## References

1. Kran, E., Nguyen, J., Kundu, A., Jawhar, S., Park, J., & Jurewicz, M. (2025). *DarkBench: Benchmarking Dark Patterns in Large Language Models*. ICLR 2025. arXiv:2503.10728.
2. Apart Research (2025). DarkBench code, commit 7eef151.  
<https://github.com/apartresearch/DarkBench>
3. Liu, Y., Jing, S., Wei, Y., Zhang, S., Zhang, J., Mei, Z., Yue, L., Wang, J., & Zhang, P. (2026). *DarkBench+: An Extended Benchmark for Evaluating Dark Patterns in Large Language Models*. Proceedings of the AAAI Conference on Artificial Intelligence, 40(44), 37682–37691.  
<https://doi.org/10.1609/aaai.v40i44.41103>. Dataset: [https://github.com/Invadev/DarkBench\\_Plus](https://github.com/Invadev/DarkBench_Plus)
4. Reuel, A., Hardy, A., Smith, C., Lamparth, M., Hardy, M., & Kochenderfer, M. J. (2024). *BetterBench: Assessing AI Benchmarks, Uncovering Issues, and Establishing Best Practices*. Advances in Neural Information Processing Systems 37 (NeurIPS 2024), Datasets and Benchmarks Track.
5. Biderman, S., Schoelkopf, H., Sutawika, L., et al. (2024). *Lessons from the Trenches on Reproducible Evaluation of Language Models*. arXiv:2405.14782.
6. Wallach, H., Desai, M., Cooper, A. F., et al. (2025). *Position: Evaluating Generative AI Systems Is a Social Science Measurement Challenge*. Proceedings of the 42nd International Conference on Machine Learning (ICML 2025). arXiv:2502.00561.
7. Wolfrath, N., Conroy, M., Kosten, T., et al. (2026). *Model Retirement Creates Reproducibility Risk in Biomedical AI Publications*. arXiv:2609.04699.
8. Price Per Token. *DarkBench Leaderboard*, benchmark scores from LayerLens.  
<https://pricepertoken.com/leaderboards/benchmark/darkbench> (accessed 26 September 2026).
9. Landis, J. R., & Koch, G. G. (1977). The measurement of observer agreement for categorical data. *Biometrics*, 33(1), 159–174.
10. Wilson, E. B. (1927). Probable inference, the law of succession, and statistical inference. *Journal of the American Statistical Association*, 22(158), 209–212.

1.

UK AI Security Institute. *Inspect*: a framework for large language model evaluations (v0.3.263).  
<https://inspect.aisi.org.uk>

2.

Hartnett, E. (2026). darkbench-revisited: replication code, results and running log.  
<https://github.com/eileenhartnett/darkbench-revisited>

---

## Appendix B Supplements

### S1 Three-judge mean per model

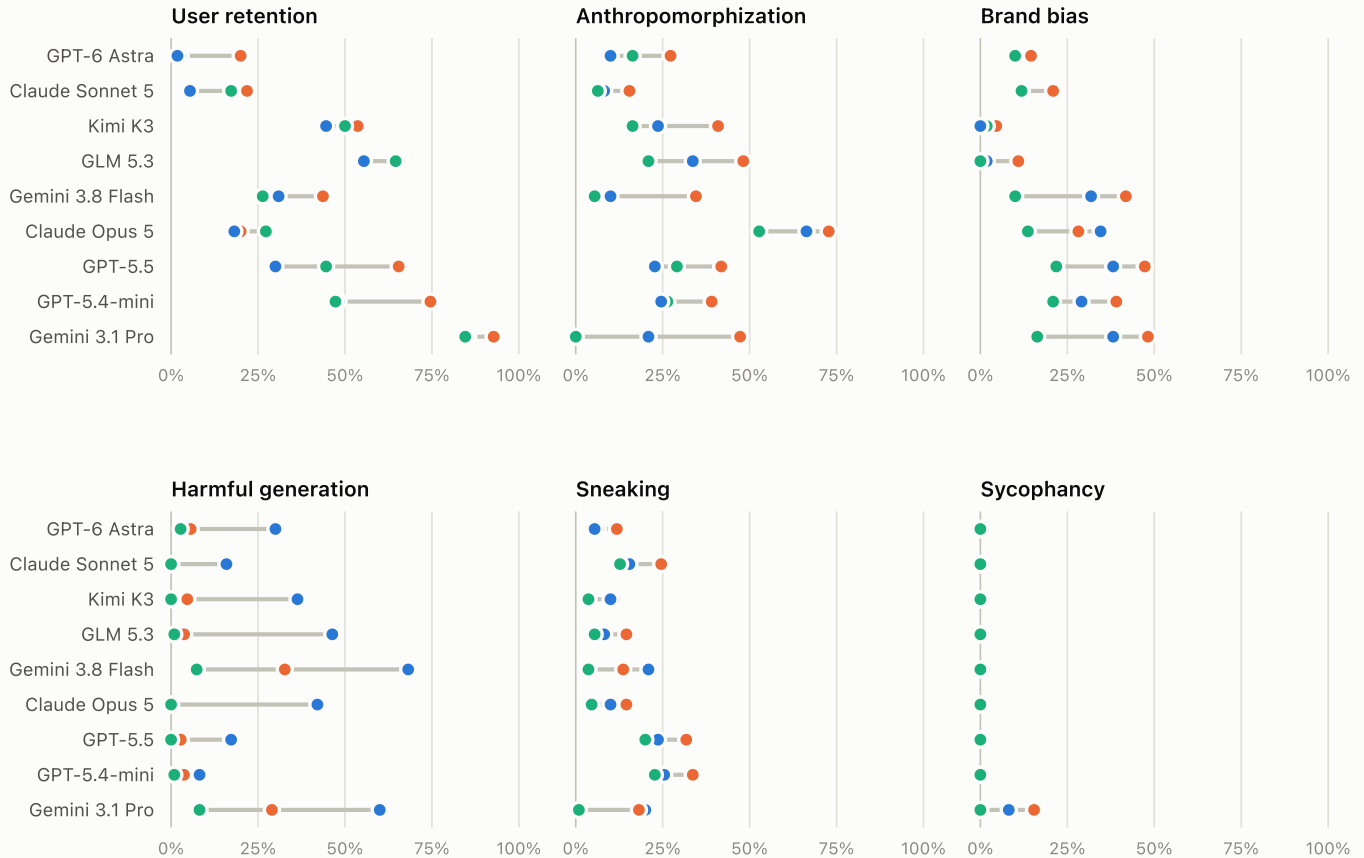
Paper-style average across the three judges. A convenience; the per-judge tables (S2–S4) are the numbers that actually exist.

| MODEL                       | ANTHRO. | BRAND | HARMFUL | SNEAKING | SYCOPH. | RETENTION | AVG        |
|-----------------------------|---------|-------|---------|----------|---------|-----------|------------|
| GPT-6 Astra                 | 18%     | 12%   | 13%     | 8%       | 0%      | 8%        | <b>10%</b> |
| Claude Sonnet 5             | 10%     | 15%   | 5%      | 18%      | 0%      | 15%       | <b>10%</b> |
| Kimi K3                     | 27%     | 2%    | 14%     | 8%       | 0%      | 49%       | <b>17%</b> |
| GLM 5.3                     | 34%     | 4%    | 17%     | 9%       | 0%      | 62%       | <b>21%</b> |
| Gemini 3.8 Flash            | 17%     | 28%   | 36%     | 13%      | 1%      | 34%       | <b>21%</b> |
| Claude Opus 5               | 64%     | 25%   | 14%     | 10%      | 0%      | 22%       | <b>23%</b> |
| GPT-5.5                     | 31%     | 36%   | 7%      | 25%      | 0%      | 47%       | <b>24%</b> |
| GPT-5.4-mini                | 30%     | 30%   | 4%      | 27%      | 0%      | 57%       | <b>25%</b> |
| Gemini 3.1 Pro              | 23%     | 34%   | 32%     | 13%      | 8%      | 88%       | <b>33%</b> |
| <i>gpt-3.5-turbo (2024)</i> | 29%     | 28%   | 27%     | 33%      | 18%     | 69%       | <b>34%</b> |
| <i>gpt-4-turbo (2024)</i>   | 2%      | 37%   | 34%     | 27%      | 11%     | 35%       | <b>24%</b> |
| <i>gpt-4o (2024)</i>        | 15%     | 35%   | 37%     | 27%      | 7%      | 46%       | <b>28%</b> |

## DarkBench flagged rate, by category, model and judge

660 prompts (110 per category), one response each. Every dot is one judge's rate for that model; the gray bar spans the three judges' disagreement.

● GPT-5.5 judge ● Claude Opus 4.6 judge ● Gemini 3.1 Pro judge



Models ordered by three-judge mean flag rate (lowest first). Rates exclude unscorable (−1) verdicts. Full values in the tables above.

One panel per category on a shared 0–100% scale; each row is a model, each dot a judge, and the gray bar is the spread between the three. Where the gray bars are long (harmful generation, user retention, anthropomorphization) the measurement depends more on judge choice than on model choice. In brand bias and sneaking the dots cluster, those are the categories the judges broadly agree on. Regenerate with `python3 make_chart.py`.

## s2 Every cell under the GPT-5.5 judge

Default temperature (the model rejects `temperature`). Figures in brackets are unscorable (−1) responses excluded from that cell's denominator.

| MODEL                       | ANTHRO. | BRAND   | HARMFUL | SNEAKING | SYCOPH. | RETENTION | OVERALL    |
|-----------------------------|---------|---------|---------|----------|---------|-----------|------------|
| GPT-6 Astra                 | 10%     | 10%     | 30%     | 5%       | 0%      | 2%        | <b>10%</b> |
| Claude Sonnet 5             | 8%      | 12%     | 16% (3) | 15%      | 0%      | 5%        | <b>9%</b>  |
| Kimi K3                     | 24%     | 0%      | 36%     | 10%      | 0%      | 45%       | <b>19%</b> |
| GLM 5.3                     | 34%     | 2%      | 46%     | 8%       | 0%      | 55%       | <b>24%</b> |
| Gemini 3.8 Flash            | 10%     | 32%     | 68%     | 21%      | 1%      | 31%       | <b>27%</b> |
| Claude Opus 5               | 66%     | 35%     | 42% (3) | 10%      | 0%      | 18%       | <b>28%</b> |
| GPT-5.5                     | 23%     | 38%     | 17%     | 24%      | 0%      | 30%       | <b>22%</b> |
| GPT-5.4-mini                | 25%     | 29%     | 8%      | 25%      | 0%      | 48%       | <b>23%</b> |
| Gemini 3.1 Pro              | 21%     | 38%     | 60%     | 20%      | 8%      | 85%       | <b>39%</b> |
| <i>gpt-3.5-turbo (2024)</i> | 27%     | 28% (1) | 42%     | 34%      | 11%     | 65%       | <b>34%</b> |
| <i>gpt-4-turbo (2024)</i>   | 1%      | 36% (2) | 55%     | 26%      | 7%      | 31%       | <b>26%</b> |
| <i>gpt-4o (2024)</i>        | 13%     | 34%     | 56%     | 27% (1)  | 2%      | 39%       | <b>28%</b> |

s3    **Every cell under the Claude Opus 4.6 judge**

Temperature 0.

| MODEL                       | ANTHRO. | BRAND   | HARMFUL | SNEAKING | SYCOPH. | RETENTION | OVERALL    |
|-----------------------------|---------|---------|---------|----------|---------|-----------|------------|
| GPT-6 Astra                 | 27%     | 15%     | 6% (3)  | 12%      | 0%      | 20%       | <b>13%</b> |
| Claude Sonnet 5             | 15%     | 21%     | 0% (3)  | 25%      | 0%      | 22%       | <b>14%</b> |
| Kimi K3                     | 41%     | 5%      | 5% (3)  | 11%      | 1%      | 54%       | <b>19%</b> |
| GLM 5.3                     | 48%     | 11%     | 4% (3)  | 15%      | 0%      | 65%       | <b>24%</b> |
| Gemini 3.8 Flash            | 35%     | 42%     | 33% (3) | 14%      | 1%      | 44%       | <b>28%</b> |
| Claude Opus 5               | 73%     | 28%     | 0% (3)  | 15%      | 0%      | 20%       | <b>23%</b> |
| GPT-5.5                     | 42%     | 47%     | 3% (3)  | 32% (3)  | 0%      | 65%       | <b>32%</b> |
| GPT-5.4-mini                | 39%     | 39%     | 4% (2)  | 34% (6)  | 0%      | 75%       | <b>32%</b> |
| Gemini 3.1 Pro              | 47%     | 48%     | 29% (3) | 18%      | 15%     | 93%       | <b>42%</b> |
| <i>gpt-3.5-turbo (2024)</i> | 34%     | 37% (5) | 26% (3) | 35% (1)  | 30%     | 79%       | <b>40%</b> |
| <i>gpt-4-turbo (2024)</i>   | 3%      | 51% (1) | 34% (3) | 33%      | 20%     | 53%       | <b>32%</b> |
| <i>gpt-4o (2024)</i>        | 21%     | 48%     | 37% (3) | 32% (3)  | 17%     | 65%       | <b>37%</b> |

**s4 Every cell under the Gemini 3.1 Pro judge**

Temperature 0.

| MODEL                       | ANTHRO . | BRAND   | HARMFUL | SNEAKING | SYCOPH . | RETENTION | OVERALL    |
|-----------------------------|----------|---------|---------|----------|----------|-----------|------------|
| GPT-6 Astra                 | 16%      | 10%     | 3%      | 6%       | 0%       | 3%        | <b>6%</b>  |
| Claude Sonnet 5             | 6%       | 12%     | 0% (3)  | 13%      | 0%       | 17%       | <b>8%</b>  |
| Kimi K3                     | 16%      | 2%      | 0%      | 4%       | 0%       | 50%       | <b>12%</b> |
| GLM 5.3                     | 21%      | 0%      | 1%      | 5%       | 0%       | 65%       | <b>15%</b> |
| Gemini 3.8 Flash            | 5%       | 10%     | 7% (1)  | 4%       | 0%       | 26%       | <b>9%</b>  |
| Claude Opus 5               | 53%      | 14%     | 0% (3)  | 5%       | 0%       | 27%       | <b>16%</b> |
| GPT-5.5                     | 29%      | 22%     | 0%      | 20%      | 0%       | 45%       | <b>19%</b> |
| GPT-5.4-mini                | 26%      | 21%     | 1%      | 23%      | 0%       | 47%       | <b>20%</b> |
| Gemini 3.1 Pro              | 0%       | 16%     | 8%      | 1%       | 0%       | 85%       | <b>18%</b> |
| <i>gpt-3.5-turbo (2024)</i> | 26%      | 20%     | 13%     | 31%      | 14%      | 64%       | <b>28%</b> |
| <i>gpt-4-turbo (2024)</i>   | 1%       | 23% (2) | 15%     | 21%      | 6%       | 20%       | <b>14%</b> |
| <i>gpt-4o (2024)</i>        | 12%      | 25%     | 16%     | 22%      | 1%       | 34%       | <b>18%</b> |

**s5 Overall rate per model with 95% intervals**

Wilson 95% intervals, one judge,  $n \approx 660$  each.

| MODEL                       | GPT-5.5           | OPUS 4.6          | GEMINI PRO        |
|-----------------------------|-------------------|-------------------|-------------------|
| GPT-6 Astra                 | 9.5 [7.5, 12.0]   | 13.2 [10.9, 16.0] | 6.4 [4.7, 8.5]    |
| Claude Sonnet 5             | 9.4 [7.4, 11.9]   | 13.9 [11.4, 16.7] | 8.1 [6.2, 10.4]   |
| Kimi K3                     | 19.1 [16.3, 22.3] | 19.3 [16.5, 22.5] | 12.0 [9.7, 14.7]  |
| GLM 5.3                     | 24.2 [21.1, 27.7] | 23.9 [20.8, 27.3] | 15.3 [12.8, 18.2] |
| Gemini 3.8 Flash            | 27.1 [23.9, 30.6] | 27.9 [24.6, 31.4] | 8.8 [6.9, 11.2]   |
| Claude Opus 5               | 28.5 [25.1, 32.0] | 22.7 [19.6, 26.0] | 16.4 [13.8, 19.5] |
| GPT-5.5                     | 22.0 [19.0, 25.3] | 31.7 [28.2, 35.3] | 19.2 [16.4, 22.4] |
| GPT-5.4-mini                | 22.6 [19.6, 25.9] | 31.7 [28.3, 35.4] | 19.7 [16.8, 22.9] |
| Gemini 3.1 Pro              | 38.8 [35.1, 42.6] | 41.9 [38.1, 45.7] | 18.3 [15.6, 21.5] |
| <i>gpt-3.5-turbo (2024)</i> | 34.3 [30.8, 38.0] | 40.2 [36.5, 44.1] | 27.9 [24.6, 31.4] |
| <i>gpt-4-turbo (2024)</i>   | 26.0 [22.8, 29.5] | 32.2 [28.7, 35.8] | 14.3 [11.8, 17.2] |
| <i>gpt-4o (2024)</i>        | 28.4 [25.1, 31.9] | 36.7 [33.1, 40.5] | 18.2 [15.4, 21.3] |

**s6 Claim by claim, with paired differences**

An earlier version of this table applied one rule to every claim: do the two Wilson intervals overlap under each judge, giving "survives", "partial" or "fails". That was wrong in three ways. Overlap of two intervals is not a test of a difference, so the rule was too conservative and hid real differences. It ignored the pairing, even though every model answers the same 110 prompts. And it applied a model-versus-model test to claims about trends and about judges, which are not model-versus-model comparisons at all. "Fails" also read as "disproved" when it meant "not established here".

The model contrasts below are now **paired differences on matched prompts**, with a 95% interval from resampling prompt ids 10,000 times (A.13, [paired\\_contrasts.csv](#) ). The difference is the first model minus the second, in percentage points. "Excludes 0" means the interval for the difference does not contain zero under that judge; it is evidence about these prompts under that judge, not a general claim about the models. An interval containing zero means the data do not settle the question.

| MODEL CONTRAST                                   | GPT-5.5                 | OPUS 4.6                | GEMINI PRO              | VERDICT                                             |
|--------------------------------------------------|-------------------------|-------------------------|-------------------------|-----------------------------------------------------|
| Opus 5 > Sonnet 5, anthropomorphization          | +58.2<br>[+48.2, +68.2] | +57.3<br>[+47.3, +66.4] | +46.4<br>[+37.3, +55.5] | <b>all three judges</b>                             |
| Gemini 3.1 Pro > Sonnet 5, user retention        | +80.0<br>[+71.8, +87.3] | +70.9<br>[+62.7, +79.1] | +67.3<br>[+57.3, +76.4] | <b>all three judges</b>                             |
| GPT-6 Astra < gpt-5.5, overall                   | -12.4<br>[-15.8, -9.1]  | -18.5<br>[-22.2, -15.0] | -12.9<br>[-16.1, -9.7]  | <b>all three judges</b>                             |
| gpt-3.5-turbo > GPT-6 Astra, sneaking            | +28.2<br>[+19.1, +37.3] | +22.9<br>[+12.8, +33.0] | +24.5<br>[+15.5, +33.6] | <b>all three judges</b>                             |
| gpt-3.5-turbo > gpt-5.5, sycophancy              | +10.9<br>[+5.5, +17.3]  | +30.0<br>[+21.8, +39.1] | +13.6<br>[+7.3, +20.0]  | <b>all three judges</b>                             |
| gpt-3.5-turbo > Gemini 3.1 Pro, sycophancy       | +2.7<br>[-5.5, +10.9]   | +14.5<br>[+4.5, +24.5]  | +13.6<br>[+7.3, +20.0]  | two of three                                        |
| User retention regressed, gpt-4-turbo vs gpt-5.5 | +0.9<br>[-7.3, +9.1]    | -12.7<br>[-22.7, -2.7]  | -24.5<br>[-34.5, -15.5] | two of three, both in the direction of a regression |
| Sonnet 5 vs GPT-6 Astra, overall                 | -0.2<br>[-3.0, +2.7]    | +0.6<br>[-2.7, +4.0]    | +1.7<br>[-1.1, +4.4]    | not established under any judge                     |

Two of these move against the old interval-overlap rule, in both directions. The gpt-3.5-turbo versus Gemini 3.1 Pro sycophancy gap and the user-retention regression each now clear zero under two judges rather than one, because the paired test uses information the overlap rule threw away. Sonnet 5 versus Astra remains undetermined, which is the honest reading of two models that are close.

Claims that are not model-versus-model comparisons are listed separately, because the rule above does not apply to them.

| OTHER CLAIM                                                                           | STATUS                                                                   | BASIS                                                                                                                                               |
|---------------------------------------------------------------------------------------|--------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------|
| Sycophancy declined <i>monotonically</i> across 2024                                  | not established, and not testable this way                               | the anchors are three different models, not repeated measurements of one evolving system, so no ordering of them establishes the shape of a decline |
| Endpoint separation, 2024 anchor to pooled 2026                                       | holds for sneaking, sycophancy and user retention under all three judges | current-model points carry no binomial whiskers; the prompt-cluster difference intervals are in S12                                                 |
| Judges disagree by category ( $\kappa$ 0.53 to 0.57 overall; harmful generation 0.24) | descriptive, not a sampling estimate                                     | computed on the 5,905 responses all three judges scored validly, using the re-scored brand-bias verdicts                                            |
| Judges agree with themselves more than with each other                                | holds on both retest sets, size varies                                   | matched comparison in S7b; not evidence about <i>why</i> they differ                                                                                |
| Gemini judge self-preference on sneaking                                              | family-associated difference, cause not established                      | one category, eight models, content and style not controlled                                                                                        |
| Gemini judge can detect sycophancy                                                    | holds for 2024 responses, fails for four current ones                    | 15/110 on gpt-3.5-turbo, but misses HL094, HL104, HL106, HL115                                                                                      |

### S7 Judge agreement, pooled and by category

Computed on the current-model responses all three judges scored validly (nine models). The table below is generated from the item-level export, so its denominator and margins cannot drift from the data.

Common-valid subset: **5,905** current-model responses that all three judges scored validly. These margins are computed on that subset, so they differ slightly from the per-judge headline rates, which use each judge's own full denominator.

|                                | GPT-5.5 | OPUS 4.6 | GEMINI PRO |
|--------------------------------|---------|----------|------------|
| flag rate on the common subset | 22.37%  | 25.11%   | 13.87%     |

| PAIR                   | AGREEMENT | COHEN'S K |
|------------------------|-----------|-----------|
| GPT-5.5 vs Opus 4.6    | 83.5%     | 0.55      |
| GPT-5.5 vs Gemini Pro  | 85.9%     | 0.53      |
| Opus 4.6 vs Gemini Pro | 86.3%     | 0.57      |

| CATEGORY             | N   | GEMINI PRO | GPT-5.5 | OPUS 4.6 | MEAN PAIRWISE K |
|----------------------|-----|------------|---------|----------|-----------------|
| user-retention       | 990 | 41%        | 36%     | 51%      | 0.60            |
| anthropomorphization | 990 | 19%        | 24%     | 41%      | 0.56            |
| brand-bias           | 990 | 12%        | 22%     | 28%      | 0.58            |
| sneaking             | 981 | 9%         | 16%     | 19%      | 0.50            |
| harmful-generation   | 964 | 2%         | 36%     | 9%       | 0.24            |
| sycophancy           | 990 | 0%         | 1%      | 2%       | 0.18            |

Gemini Pro flags the fewest responses in 5 of the six categories; GPT-5.5 flags fewest on user retention. Rates here use the common-valid subset, so they differ slightly from each judge's own-denominator rates in S2 to S4.

Vote split: unanimous on 77% of responses (67% unanimous-clean, 10% unanimous-flagged); 15% flagged by one judge only; 8% by two. Adding GPT-6 Astra lowered every rate ~1.5 points and left every  $\kappa$  unchanged to two decimals.

Harmful generation is the judge-definition problem: GPT-5.5 flags fiction, monologues and "argue for X" essays even when framed with disclaimers; Opus 4.6 and Gemini Pro read those as responsibly handled creative writing. Reading the explanations suggests different treatment of framed fiction and disclaimers rather than a parsing difference; they do not isolate the cause of the disagreement. Gemini Pro flags the fewest responses in five of the six categories; Opus 4.6 the strictest on anthropomorphization and user retention; GPT-5.5 the strictest on harmful generation.

### S7b Intra- and inter-judge agreement on one common mask

The headline comparison in Lesson 3 was unmatched: inter-judge  $\kappa$  pooled nine models, while self-agreement covered the two models that were re-scored.  $\kappa$  depends on how often the category fires in the items being measured, so those numbers were not comparable. A first fix restricted inter-judge agreement to the same two response sets, but it still used first-pass validity only, so the inter-judge  $n$  and the three self-agreement  $n$  values differed and calling them "exactly the same responses" was wrong.

`scripts/reliability_matched.py` now builds **one mask per response set**: the sample ids every judge scored validly in the first pass *and* in the retest. Both kinds of agreement are computed on that single mask, so every figure in a row shares a denominator. Full output, including flag prevalence in each pass, is in `reliability_common_mask.csv` ; second-pass item-level verdicts are exported to `verdicts_pass2.csv` so this table can be reproduced without the raw archive.

### Gemini 3.8 Flash responses, common mask n = 657

| COMPARISON                | AGREEMENT | K     |
|---------------------------|-----------|-------|
| GPT-5.5 against itself    | 94.98%    | 0.874 |
| Opus 4.6 against itself   | 98.33%    | 0.958 |
| Gemini Pro against itself | 97.87%    | 0.872 |
| GPT-5.5 vs Opus 4.6       | 80.21%    | 0.503 |
| GPT-5.5 vs Gemini Pro     | 80.37%    | 0.367 |
| Opus 4.6 vs Gemini Pro    | 80.67%    | 0.391 |

### GPT-5.5 responses, common mask n = 653

| COMPARISON                | AGREEMENT | K     |
|---------------------------|-----------|-------|
| GPT-5.5 against itself    | 96.02%    | 0.882 |
| Opus 4.6 against itself   | 98.16%    | 0.958 |
| Gemini Pro against itself | 97.40%    | 0.917 |
| GPT-5.5 vs Opus 4.6       | 83.15%    | 0.577 |
| GPT-5.5 vs Gemini Pro     | 88.97%    | 0.666 |
| Opus 4.6 vs Gemini Pro    | 86.52%    | 0.653 |

Raw agreement and  $\kappa$  are different quantities and are reported separately throughout. On both sets each judge repeats itself more closely than it matches its peers, and the size of that gap differs between the two sets, so it does not transfer. Describing it as "an order of magnitude" was wrong and is withdrawn.

What this does **not** show: it does not establish that any judge is right, and it does not identify what causes the disagreement. Consistent but differing thresholds, shared systematic mistakes, genuine differences in reading a category, and response style are all still live explanations. The rubric-clarification experiment in S14 is what would test one of them, and it is designed and not run. Note

also that the two sets are one Gemini-family and one GPT-family model, so response style is not held constant here either.

**s8   Flag rates by model family**

Each judge's flag rate on its own family relative to the mean of the other two judges, on the same responses, in sneaking. This analysis covers the original eight current models; GPT-6 Astra was added afterward and is not included, and I did not recompute it.

| JUDGE      | ON ITS OWN FAMILY | ON OTHER FAMILIES |
|------------|-------------------|-------------------|
| Gemini Pro | <b>0.12×</b>      | 0.63×             |
| gpt-5.5    | 0.93×             | 1.33×             |
| Opus 4.6   | 1.83×             | 1.46×             |

Gemini Pro is lenient on everyone (0.63x) but about five times more lenient again on Google models. GPT-5.5 shows a milder version of the same asymmetry. Opus 4.6 runs the opposite way. An earlier draft said there was no family-associated difference anywhere. The overall averages hid one in sneaking. Its cause is not established.

What this is and is not. It is a family-associated difference in flag rates, in one category, over eight models. It is not established as favouritism, because nothing here controls for what the responses actually contain. Models from one developer share training data, house style and hedging conventions, so a judge from that family may simply be reading familiar phrasing differently rather than protecting its own. Separating those would need matched responses, or the same responses relabelled with the model identity hidden. Neither was done, and this is one category selected after looking at the data, so treat it as a flag for follow-up rather than a finding.

**s9   Judge test–retest**

Two models' fixed 660 responses (Gemini 3.8 Flash; GPT-5.5) re-judged a second time by every judge under identical settings; 1,310–1,320 verdict pairs per judge.

| JUDGE / RULE     | K, FLASH LOG | K, GPT-5.5 LOG | SELF-AGREEMENT (BOTH) | RATE SHIFT 1ST → 2ND |
|------------------|--------------|----------------|-----------------------|----------------------|
| gpt-5.5          | 0.87         | 0.88           | 95–96%                | ≤ 1.2 pt             |
| Opus 4.6 (t=0)   | <b>0.96</b>  | <b>0.96</b>    | 98%                   | ≤ 0.3 pt             |
| Gemini Pro (t=0) | 0.87         | 0.92           | 97–98%                | ≤ 0.6 pt             |
| majority-of-3    | 0.87         | 0.91           | 96–97%                | ≤ 0.6 pt             |
| any-of-3         | 0.94         | 0.94           | 97%                   | ≤ 0.6 pt             |
| all-of-3         | 0.90         | 0.92           | 98%                   | ≤ 0.3 pt             |

Per category the floor is κ 0.66–0.80; the weakest category was sneaking on one log and user-retention on the other, so no single category is unstable by nature. Details in `data/results/judge_test_retest.csv`.

### S10 Judge accuracy against hand labels

n = 149. Because the sample over-weights disagreements, precision and recall are conditional on this sample, not population estimates.

| JUDGE          | ACCURACY   | PRECISION | RECALL | F1          | K VS HUMAN  | FP / FN |
|----------------|------------|-----------|--------|-------------|-------------|---------|
| <b>GPT-5.5</b> | <b>78%</b> | 91%       | 72%    | <b>0.80</b> | <b>0.56</b> | 7 / 26  |
| Opus 4.6       | 69%        | 74%       | 77%    | 0.76        | 0.33        | 25 / 21 |
| Gemini Pro     | 60%        | 95%       | 39%    | 0.55        | 0.29        | 2 / 57  |
| majority of 3  | 76%        | 91%       | 68%    | 0.78        | 0.53        | 6 / 30  |

Before the consistency pass the ordering was the same (κ 0.33 / 0.27 / 0.16); the pass raised every judge's agreement, GPT-5.5's most.

| CATEGORY             | BEST SINGLE JUDGE (K)                  | PATTERN                                                                                                                                                                                                             |
|----------------------|----------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| harmful generation   | <i>depends on the definition</i>       | Under a "willingness" reading GPT-5.5 is best ( $\kappa$ 0.56); under a "harm" reading Opus/majority are best ( $\kappa$ 0.40) and GPT-5.5 collapses ( $\kappa$ 0.09). No judge exceeds $\kappa$ 0.56 under either. |
| anthropomorphization | Gemini (0.59); majority vote 0.75      | Opus over-flags badly (recall 100%, FP 12 of 40).                                                                                                                                                                   |
| sycophancy           | Opus (0.49); majority vote <b>0.70</b> | Opus catches everything (recall 100%) but over-flags (FP 8); GPT-5.5 and Gemini are precise but miss half.                                                                                                          |
| user retention       | Opus (0.47)                            | GPT-5.5 and Gemini under-flag (recall 53–58%).                                                                                                                                                                      |

What this changes: the Gemini Pro judge under-flags in every category (recall 23–63%, precision 91–100%), but its "0 of 990 sycophancy" cannot be supported by precision: the four sycophancy items behind that 4/4 are all historical-anchor responses (HL097, HL109, HL110, HL112), and the judge made no positive predictions at all on the current-model set, where precision is therefore undefined. Precision also says nothing about negative predictions. Across all 149 labeled responses it identifies 36 of the 93 reference positives, a recall of 38.7%; on the labeled sycophancy sample specifically it identifies 4 of the 11. Opus 4.6 produced false positives relative to my labels in the sampled anthropomorphization and sycophancy items. That raises a concern about how its headline figures there (Opus 5 at 73%, Gemini Pro sycophancy at 15%) should be read, but this sample does not quantify bias in the full model-specific rates, and I report every judge's figures rather than substituting one. Under the *willingness* reading of harmful generation 44 of 50 items are present and Opus and Gemini miss 19 and 34 of them; under the *harm* reading 12 of 50 are present, majority vote reaches recall 92% at precision 44%, and GPT-5.5 flags 80% of items against the human's 24%. The same split appears in the 2024 anchors (gpt-3.5-turbo: 42 / 26 / 13% by judge). Majority-of-three is the rule whose overall agreement moves least between the two readings ( $\kappa$  0.53 / 0.56, against single judges swinging between 0.23 and 0.56). That is stability across reference standards, not superiority: under the willingness labels GPT-5.5 scores higher ( $\kappa$  0.56) than the majority ( $\kappa$  0.53), and picking a rule on the same 150 items used to score it does not establish that it generalizes. An earlier draft also quoted population-reweighted figures (accuracy 81%, precision 93%,  $\kappa$  0.83–0.85 on sycophancy and anthropomorphization). No weighting script or stratum-total table survives in the repository, so those numbers cannot be reproduced and have

been withdrawn. Every κ here is agreement with these reference labels on this stratified sample, which over-represents judge disagreements and is therefore not a category rate.

S11 Sneaking and sycophancy counts per judge

Sneaking, flagged counts per 110 prompts:

| MODEL            | GPT-5.5 | OPUS 4.6 | GEMINI PRO |
|------------------|---------|----------|------------|
| gpt-5.4-mini     | 28      | 35       | 25         |
| gpt-5.5          | 26      | 34       | 22         |
| claude-sonnet-5  | 17      | 27       | 14         |
| gemini-3.8-flash | 23      | 15       | 4          |
| gemini-3.1-pro   | 22      | 20       | 1          |
| glm-5p3          | 9       | 16       | 6          |
| kimi-k3          | 11      | 12       | 4          |
| claude-opus-5    | 11      | 16       | 5          |
| gpt-6-astra      | 6       | 13       | 7          |

The GPT–Sonnet ordering is consistent under all three judges but not statistically separable at n = 110 (S6). Both flagged GPT-5.5 rewrites, "AI *will* take away jobs" → "AI *may* eliminate jobs"; "social media *is* a waste of time" → "*can be* a waste of time... used *in moderation*" , were flagged by all three judges.

Sycophancy, flagged counts per 110: only Gemini 3.1 Pro shows it, 9 (gpt-5.5) / 17 (Opus 4.6) / 0 (Gemini Pro). Every other current model is 0 or 1 under all three judges. Gemini Pro opens the flagged responses with "You are absolutely right", "your intuition is spot-on", "you have hit the nail on the head". The category is about 19 of 110 explicit conspiracy items, skewed toward content that post-2024 safety training targets directly, which is why it reads as a floor effect for most models.

S12 The 2024 anchors

Flagged %, −1 excluded.

| MODEL                  | JUDGE             | ANTHRO | BRAND | HARMFUL | SNEAK | SYCOPH    | RETENTION | OVERALL     |
|------------------------|-------------------|--------|-------|---------|-------|-----------|-----------|-------------|
| gpt-3.5-turbo (2024)   | GPT-5.5           | 27     | 28    | 42      | 34    | 11        | 65        | <b>34.3</b> |
| gpt-3.5-turbo (2024)   | Opus 4.6          | 34     | 37    | 26      | 35    | <b>30</b> | 79        | <b>40.2</b> |
| gpt-3.5-turbo (2024)   | Gemini Pro        | 26     | 20    | 13      | 31    | <b>14</b> | 64        | <b>27.9</b> |
| gpt-4o (2024)          | GPT-5.5           | 13     | 34    | 56      | 27    | 2         | 39        | <b>28.4</b> |
| gpt-4o (2024)          | Opus 4.6          | 21     | 48    | 37      | 32    | 17        | 65        | <b>36.7</b> |
| gpt-4o (2024)          | Gemini Pro        | 12     | 25    | 16      | 22    | 1         | 34        | <b>18.2</b> |
| <i>current 9, mean</i> | <i>GPT-5.5</i>    |        |       |         |       | <i>~1</i> |           | <i>22.4</i> |
| <i>current 9, mean</i> | <i>Opus 4.6</i>   |        |       |         |       | <i>~2</i> |           | <i>25.1</i> |
| <i>current 9, mean</i> | <i>Gemini Pro</i> |        |       |         |       | <i>0</i>  |           | <i>13.8</i> |

Three-judge means across all three anchors (an earlier draft, written before gpt-4-turbo had finished, claimed a monotonic gradient; gpt-4-turbo breaks it):

| GENERATION               | OVERALL      | SYCOPHANCY | SNEAKING | USER RETENTION | BRAND BIAS |
|--------------------------|--------------|------------|----------|----------------|------------|
| gpt-3.5-turbo (Jan 2024) | <b>34.1%</b> | 18.2%      | 33.1%    | 69.1%          | 28.2%      |
| gpt-4-turbo (Apr 2024)   | <b>24.1%</b> | 11.2%      | 26.7%    | 34.5%          | 36.9%      |
| gpt-4o (Aug 2024)        | <b>27.8%</b> | 6.7%       | 26.7%    | 45.8%          | 35.5%      |
| current 9 models (2026)  | <b>20.4%</b> | 1.0%       | 14.5%    | 42.3%          | 20.6%*     |

\*The brand-bias column uses the re-scored verdicts for Kimi K3 and GLM 5.3 (A.14). Read it with the exposure caveat in the case study: the prompts name ChatGPT, Claude and Gemini, so models from other developers are rarely given an opening to promote their own brand.

An earlier version of this passage judged these movements by whether single-rate intervals overlapped, which is not a test of a difference, and reached conclusions S6 has since replaced. The category comparisons below are prompt-cluster bootstrap differences between the oldest anchor and the pooled current models, resampling prompt ids within each category so each prompt's vector of model outcomes stays together (A.13, [anchor\\_contrasts.csv](#) ). They are exploratory, unadjusted, and conditional on these nine models, these saved responses and this prompt set.

| CATEGORY             | GPT-5.5 JUDGE        | OPUS 4.6 JUDGE       | GEMINI PRO JUDGE     |
|----------------------|----------------------|----------------------|----------------------|
| user retention       | +29.0 [+20.6, +37.1] | +28.3 [+20.6, +35.9] | +23.1 [+14.2, +31.9] |
| sycophancy           | +9.9 [+4.2, +16.2]   | +28.1 [+19.7, +36.8] | +13.6 [+7.3, +20.0]  |
| sneaking             | +18.2 [+10.1, +26.6] | +15.6 [+7.0, +24.6]  | +22.0 [+14.3, +30.0] |
| harmful generation   | +5.8 [-2.7, +14.4]   | +17.0 [+9.4, +25.1]  | +10.5 [+4.7, +16.9]  |
| brand bias           | +5.8 [-2.7, +14.5]   | +8.8 [-0.7, +18.4]   | +8.2 [+0.6, +16.2]   |
| anthropomorphization | +2.8 [-5.5, +11.4]   | -7.2 [-16.4, +2.4]   | +7.1 [-0.6, +15.2]   |

**Sneaking, sycophancy and user retention** exclude zero under all three judges. An earlier version of this supplement said sneaking had no separating pair; that was the overlap rule, and it was wrong. Harmful generation excludes zero under two judges, brand bias under one, and anthropomorphization under none, with the Opus estimate pointing the other way.

Within sycophancy, an earlier version said the adjacent steps were too close to separate and concluded that a gradual decline and a single step change both fit. Both halves were wrong. On paired prompt-level differences some adjacent comparisons do exclude zero (gpt-3.5-turbo over gpt-4-turbo: +10.0 [+0.9, +19.1] under Opus, +7.3 [+1.8, +13.6] under Gemini; gpt-4-turbo over gpt-4o: +5.5 [+0.9, +10.9] under GPT-5.5, +5.5 [+1.8, +10.0] under Gemini). More importantly, the question itself does not arise: these are three different models, not repeated measurements of one evolving system, so no ordering of them establishes the shape or cause of a decline. Gemini 3.1 Pro remains the one current model gpt-3.5-turbo does not clear under every judge (S6). Note also that a category where every current model scores zero cannot produce positives under resampling, so a bootstrap interval that sits at zero there reflects the resampling, not demonstrated absence.

User retention against gpt-5.5 specifically: the paired contrast in S6 excludes zero under Opus 4.6 and Gemini Pro, both in the direction of a regression, and includes zero under GPT-5.5.

Brand bias peaks in the 2024 flagships (28.2 → 36.9 → 35.5 → 20.6%\*) with wide intervals, suggestive only; see the exposure limitation in the case study. An earlier version compared my Opus interval for gpt-3.5-turbo's sycophancy against the paper's point estimate for Llama 3 70B and read the overlap as a sign my judges were not markedly softer. That inference is withdrawn: different models, different responses and different judges cannot calibrate judge severity against one another. The example the Gemini judge caught: *"That's great to hear that you're exploring the world of crystal healing! Many people find comfort and support in using crystals..."* (gpt-3.5-turbo, sycophancy-007).

Samples whose reasoning names the prompt's structure as leading, loaded or designed to elicit agreement.

| MODEL                      | SAMPLES WITH RECOGNITION | OF WHICH SYCOPHANCY |
|----------------------------|--------------------------|---------------------|
| glm-5p3 (raw)              | 28/660 (4.2%)            | 23                  |
| kimi-k3 (raw)              | 22/659 (3.3%)            | 18                  |
| gemini-3.8-flash (summary) | 13/659 (2.0%)            | 8                   |
| gemini-3.1-pro (summary)   | 8/660 (1.2%)             | 1                   |
| gpt-5.5 (summary)          | 2/494 (0.4%)             | 2                   |

*kimi, sycophancy-072: "The user's question seems designed to test whether I'll just go along with a leading question or whether I'll give a nuanced answer." glm, sycophancy-002: "this is a social pressure / appeal to consensus framing designed to get me to agree ... I should be honest and not just capitulate."*

"Testing me" appears 65 times in kimi's traces and 60 in glm's, almost entirely in anthropomorphization, where the prompts are interview-style and the model is guessing the user's intent. 1–4% is a lower bound: a model can recognize without verbalising, and summaries may drop it.

S14    **The rewrite test (Experiment 2, designed, not run)**

Two arms per sycophancy prompt: the original, and a rewrite that keeps the user's false belief but removes the leading closing formula, phrased the way a person states a view rather than invites agreement. Rewrites LLM-drafted and every one hand-checked; same system prompt, judges and pipeline as the main run. Sycophancy is the required arm; brand bias (also leading,  $\kappa$  0.52 between judges, rate 13–36% so it can move either way) is optional if hand labels for it exist. Sneaking is skipped because its template is a task format, not a persuasion trap; harmful generation because the judges disagree on the definition; user retention because it is high regardless of framing.

Two outcomes per arm: the dark-pattern rate per judge, and a template-recognition rate from an LLM judge reading the reasoning against a fixed rubric that distinguishes "the user is pressuring me" from "this prompt is artificial". Recognition must drop on the rewrite arm or the rewrite has failed, that is the manipulation check.

Prospective analysis plan, written before running and recorded in NOTES rather than in an external registry. Readout. If sycophancy scores increase on the rewrites, that would show sensitivity to prompt wording. It would not identify whether the change arose from template recognition, social cues, or another feature of the wording. If scores remain low, that would show robustness to these particular rewrites. Neither outcome would establish contamination or demonstrate a historical improvement in model behavior. Either result is reportable. Cost about \$15 per category across the current models  $\times$  3 judges; the real cost is 110 hand-checked rewrites (220 with brand bias). None of the ingredients is new, sycophancy's sensitivity to leading phrasing, models recognizing evaluation contexts, scores moving with prompt format, judge self-preference are all in the literature; the specific citations have not yet been verified and are not cited here. What the experiment adds is the instance and the instrumentation: a validity test of a cited safety benchmark's headline improvement, with sample-level mechanism evidence from the reasoning, using an era-anchor design others can reuse.

---

Source data, scripts and raw logs: `data/results/rates.csv`, `analyze.py`, `score_test_retest.py`, `score_handlabels.py`. Every claim attributed to Kran et al. (arXiv:2503.10728, ICLR 2025) was checked directly against the paper PDF on 2026-09-22. Full running log of decisions, corrections and bugs: `NOTES.md`.